

Batch Header	
Issuer Name	Pacific Equity Partners (PEP)
Security Class	PEP Gateway Evergreen (Access Fund)
Processing Date	28-09-2026
Batch No	1652
Details	NAP X 1: BOSO INVESTMENTS PTY LTD ATF BOSO INVESTMENTS TRUST
Transactions	NAP
Brokers	No Broker
Transfer Nos	1996 - 1996
Units On	1,000,000
Units Off	0
Cheques	\$0.00
Direct Credit	\$1,000,000.00
Prepared By	NADIAH.MOHDRAMLAN - 28-09-2026 17:24.57

Processing Requirements

	Relevant Totals	Initials	Date
View/Add Transactions			
Cheques			
Direct Credit			
\$ Should Be			
\$ Over / Under			
Audit Trail			
Audited			
Transaction Update			

Audit Notes

YOUR LOGO
HERE

[Company Name in Full] (Abbreviation)

Application Checklist – Part A

Department Sign Off : Initials

Unlisted: Nadiah

Audit:

Data Entry:

Date:

28/09/2026

Funding Methods

- ☐ Cheque – Payable to the Fund (No 3rd Party)
- ☒ EFT

- ☐ BPAY – Biller Code XXXXXX
- ☐ Direct Debit – Original Form completed and signed

Investor Details

☐ Please review accordingly before ticking.

☐ Application form duly executed

- ☒ Correct Fund Name
- ☒ Original Application Form
- ☐ Form Copied(if multiple class) stamped
- ☒ Date Stamped
- ☒ Existing or New Investor
- ☐ PDS Date XX/XX/XXXX
- ☐ Online Application
- ☒ Valid & Registrable Name
- ☐ DOB
- ☒ Type of Investor
- ☐ Registered/Postal Address

- ☒ Minimum Investment Amount \$XXXXXX.XX
- ☐ Distribution Reinvestment – DRP
- ☐ DRP (Overseas acceptable?)
- ☐ Distribution Cash – EFT \$AUD (No 3rd P)
- ☒ TFN or ABN
- ☐ Savings Plan
- ☐ Communication Preference
- ☒ E-mail Address & Contact Number and Name

Dealer & Adviser Information – if applicable only

☐ Please review accordingly before ticking.

- ☐ Dealer Group
- ☐ Adviser
- ☐ Adviser Service Fees – Upfront
- ☐ Adviser Service Fees – Trail
- ☐ Ongoing Adviser Service Fee
- ☐ OASF Financial Year

Anti Money Laundering

☐ Fun AML/CTF Program – **PLEASE REFER TO PART B – AML PROCEDURE**

☐ IFSA/FSC AML form – signed

☐ Please review accordingly before ticking.

☐ Broker is Stellan Capital – AML complete

☐ Missing Documents: _____

Identification documents provided

- ☐ Individual / Joint
- ☒ Corporate
- ☐ Trust / SMSF
- ☐ Other

FATCA/CRS certification

- ☐ Mandatory for all Investors
- ☐ (SMSF simply requires the ABN is provided and keyed)

PEP Check

- ☐ Individual / Joint
- ☒ Corporate
- ☐ Unregulated Super Fund Fund/Trust
- ☐ Non-Compliant Super Fund
- ☐ Partnership

Client Specific Rules – if applicable only

- ☐ Accountant Certificate
- ☐ Bonus Allotment Assessment
- ☐ Old PDS/Application form acceptance
- ☐ AFSL License with AML Agreement with <Client> - AML exempt or Client Indemnity for AML on file.
- ☐ Scanned/Copy of Direct Debit Form acceptable with the original to follow in post

- ☐ 3rd Party Cheques only if approved by Client
- ☐ Overseas bank accounts accepted / not accepted
- ☐ No FATCA/CRS – issues log – Client/BRD contact investor
- ☐ Foreign Investor Acceptance Letter
- ☐ Red Flag Country approval – refer to UTA or CSM

Part B

AML Procedure – Collection & Verification

Client Specific AML Program – Part B

*****Documents must be originally certified***

☐ Individual / Joint

Information must be collected on the application form Documentation Requirement

- Full Name
- Date of Birth
- Residential Address
- Australian Photograph ID
- Australian Passport

☐ Australian Companies

Information must be collected on the application form

- Full Name
- Registered Office and Principal Address
- ACN
- Directors name
- Name & Address of Beneficial Owner

Documentation Requirement

(Any one from section 1 and all of section 2)

Section 1

- Originally certified ABN search on ASIC with Directors details
- Originally Certified Copy of ASIC registration

Section 2

- Full address as registered in ASIC.
 - Registered office or Principal place of business
- If the company is a proprietary or private company:
 - Provide the full name of each director of the company.
 - Full name and residential address with 25% shareholdings

☐ Trust

If the Trust is:

- A Registered Managed Investment Scheme
- A Regulated Trust (e.g.SMSF)
- A Government Superannuation Fund Established by Legislation

Documentation Requirement

- Certified Copy of Trust Deed extract or
- ABN web search print out or
- Document as proof Trust is a Managed Investment Scheme or Government Super

If the Trust is any other trust:

- Verify the Full name of the Trust
- Full Name of Beneficiary/s
- Details of membership class/es (unitholders, family, charity)

Documentation Requirement

- Original Certified Copy/Extract of Trust Deed or
- Solicitor or Accountant Letter Confirming name of Trust or
- ATO letter within the last 12 months.

Signed Off:

Signed Off:

Unlisted: _____

Audit: _____



PEP GATEWAY EVERGREEN (ACCESS FUND)

Application Form

This application form accompanies the Information Memorandum (**IM**) relating to units in PEP Gateway Evergreen (Access Fund) (**Fund**) issued by Equity Trustees Limited (ACN 004 031 298, AFSL 240975) (**Equity Trustees** or **Trustee**). The IM contains information about investing in the Fund. You should read the IM in its entirety before applying.

The law prohibits any person passing this Application Form on to another person unless it is accompanied by a complete PDS/IM.

U.S. Persons: This offer is not open to any U.S. Person. Please refer to the PDS/IM for further information.

Investment Details

Investor Name

BOSO INVESTMENTS TRUST

Postal Address

6 Castle Rock Ct, Wattle Grove NSW 2173, Australia

TFN

308476282

TFN Exemption Code

Contact First Name

DAVID

Contact Last Name

SMITH

Email Address

davidcsmith1123@gmail.com

Contact Number

0417202383

CRN

194211074

ARE YOU AN EXISTING INVESTOR IN THE FUND/TRUST AND WISH TO ADD TO YOUR INVESTMENT?

Existing Investor Number: yes. InvApp00011422

FUND NAME	APIR CODE	APPLICATION AMOUNT
PEP GATEWAY EVERGREEN (ACCESS FUND)	PEP3457AU	\$1,000,000.00

The minimum initial investment is 50000.00

Distribution Instructions

If you do not select a distribution option, we will automatically reinvest your distribution. If you select cash, please ensure you provide your bank details below.

- ☒ **Reinvest distributions** if you select this option your distribution will be reinvested in the Fund
- ☐ **Pay distributions** to the bank if you select this option your distribution will be paid to the bank account below.

Investor bank details

For withdrawals and distributions (if applicable), these must match the investor(s)' name and must be an AUD-denominated bank account with an Australian domiciled bank.

Financial institution name and branch location

Commonwealth Bank

BSB

Account number

062322

10599464

Account name

BOSO INVESTMENTS TRUST

Payment method

Direct credit - pay to:

Financial institution name	Australia & New Zealand Banking Group Limited
Branch location	Refer to BSB 012-019, Sydney 2000, NSW
Account name	PEP Gateway Evergreen Access Fund
BSB number	012-003
Account number	838 583 887
Reference	BOSO INVESTMENTS TRUST

Source of investment

Please indicate the source of the investment amount (e.g. retirement savings, employment income):

savings

FINANCIAL ADVISER

Name of adviser

AFSL number

Name of advisory firm

Postal address

Email address

Contact number

DECLARATIONS- ALL INVESTORS MUST COMPLETE

In most cases the information that you provide in this form will satisfy the AML/CTF Act, the US Foreign Account Tax Compliance Act ('FATCA') and the Common Reporting Standards ('CRS'). However, in some instances the Trustee may contact you to request further information. It may also be necessary for the Trustee to collect information (including sensitive information) about you from third parties in order to meet its obligations under the AML/CTF Act, FATCA and CRS.

When you complete this Application Form you make the following declarations:

- I/We have received the IM and made this application in Australia (and/or New Zealand for those offers made in New Zealand).
- I/We have read the IM to which this Application Form applies and agree to be bound by the terms and conditions of the IM and the Trust Deed of the Fund, as amended from time to time, in which I/we have chosen to invest.
- I/we have carefully considered the features of Fund as described in the IM (including its investment objectives, minimum suggested investment timeframe, risk level, withdrawal arrangements and investor suitability) and, after obtaining any financial and/or tax advice that I/we deemed appropriate, am/are satisfied that my/our proposed investment in the Fund is consistent with my/our investment objectives, financial circumstances and needs.
- I/We have considered our personal circumstances and, where appropriate, obtained investment and/or taxation advice.
- I/We hereby declare that I/we are not a US Person as defined in the IM.
- I/We acknowledge that (if a natural person) I am/we are 18 years of age or over and I am/we are eligible to hold units in the Fund in which I/We have chosen to invest.
- I/We acknowledge and agree that Equity Trustees has outlined in the IM provided to me/us how and where I/we can obtain a copy of the Equity Trustees Group Privacy Statement.
- I/We consent to the transfer of any of my/our personal information to external third parties including but not limited to fund administrators, fund investment manager(s) and related bodies corporate who are located outside Australia for the purpose of administering the products and services for which I/we have engaged the services of Equity Trustees or its related bodies corporate and to foreign government agencies for reporting purposes (if necessary).
- I/we hereby confirm that the personal information that I/we have provided to Equity Trustees is correct and current in every detail, and should these details change, I/we shall promptly advise Equity Trustees in writing of the change(s).
- I/We agree to provide further information or personal details to the Trustee if required to meet its obligations under anti-money laundering and counter-terrorism legislation, US tax legislation or reporting legislation and acknowledge that processing of my/our application may be delayed and will be processed at the unit price applicable for the Business Day as at which all required information has been received and verified.
- If I/we have provided an email address, I/we consent to receive ongoing investor information including IM information, confirmations of transactions and additional information as applicable via email.
- I/We acknowledge that Equity Trustees does not guarantee the repayment of capital or the performance of the Fund or any particular rate of return from the Fund.
- I/We acknowledge that an investment in the Fund is not a deposit with or liability of Equity Trustees and is subject to investment risk including possible delays in repayment and loss of income or capital invested.
- I/We acknowledge that Equity Trustees is not responsible for the delays in receipt of monies caused by the postal service or the investor's bank.
- If I/we lodge a electronic application request, I/we acknowledge and agree to release, discharge and agree to indemnify Equity Trustees from and against any and all losses, liabilities, actions, proceedings, account claims and demands arising from any electronic application.
- If I/we have completed and lodged the relevant sections on authorised representatives, agents and/or financial advisers on the Application Form then I/we agree to release, discharge and indemnify Equity Trustees from and against any and all losses, liabilities, actions, proceedings, account claims and demands arising from Equity Trustees acting on the instructions of my/our authorised representatives, agents and/or financial advisers.
- If this is a joint application each of us agrees that our investment is held as joint tenants.
- I/We acknowledge and agree that where the Trustee, in its sole discretion, determines that:
 - I/we are ineligible to hold units in a Fund or have provided misleading information in my/our Application Form; or
 - I/we owe any amounts to Equity Trustees, then I/we appoint the Trustee as my/our agent to submit a withdrawal

request on my/our behalf in respect of all or part of my/our units, as the case requires, in the Fund.

- **For Wholesale Clients*** - I/We acknowledge that I am/we are a Wholesale Client (as defined in Section 761G of the Corporations Act 2001 (Cth)) and are therefore eligible to hold units in the Fund/Trust.

***Terms and conditions for collection of Tax File Numbers (TFN) and Australian Business Numbers (ABN)**

Collection of TFN and ABN information is authorised and its use and disclosure strictly regulated by tax laws and the Privacy Act. Investors must only provide an ABN instead of a TFN when the investment is made in the course of their enterprise. You are not obliged to provide either your TFN or ABN, but if you do not provide either or claim an exemption, we are required to deduct tax from your distribution at the highest marginal tax rate plus Medicare levy to meet Australian taxation law requirements.

For more information about the use of TFNs for investments, contact the enquiries section of your local branch of the ATO. Once provided, your TFN will be applied automatically to any future investments in the Fund/Trust where formal application procedures are not required (e.g. distribution reinvestments), unless you indicate, at any time, that you do not wish to quote a TFN for a particular investment. Exempt investors should attach a copy of the certificate of exemption. For super funds or trusts list only the applicable ABN or TFN for the super fund or trust.

When you sign this Application Form you declare that you have read, agree to and make the declarations above

Investor 1

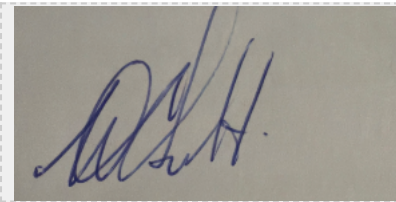
Name on individual/ entity

DAVID SMITH

Capacity (e.g Director, Secretary, Authorised signatory)

Director

Signature



Date

25 Sep 2026

Investor 2

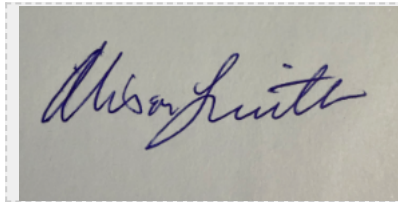
Name on individual/ entity

ALISON SMITH

Capacity (e.g Director, Secretary, Authorised signatory)

Director

Signature



Date

26 Sep 2026

Investor structure

BOSO INVESTMENTS TRUST (Trust)



Ultimate Beneficial Owners:

SMITH, ALISON LOUISE	50%
SMITH, DAVID CHARLES	50%

Entity Types

- Ancillary Fund
- Company
- Joint Holders
- Partnership
- Superfund
- Trust
- Individual

Entity Roles

- Ap Appointer
- Bn Beneficiary
- Cr Controller
- D Director
- J Joint
- M Member
- P Partner
- SA Signing Authority
- Sc Secretary
- Sh Shareholder
- St Settlor
- T Trustee
- UBO Nominated Ultimate Beneficial Owner
- Uh Unit holder

* Ultimate Beneficial Ownership Percentage relates to BOSO INVESTMENTS TRUST

Trust

Reason for attachment

BOSO INVESTMENTS TRUST (Investor)

TRUST DETAILS

Full Name of Trust

BOSO INVESTMENTS PTY LTD ATF BOSO INVESTMENTS TRUST

Full Name of Business

BOSO INVESTMENTS TRUST

Country of Establishment

Australia

Trust Type

Discretionary Investment Trust

Australian Business Number

97960455806

Trustee Name

BOSO INVESTMENTS PTY LTD

Trustee Type

Company

Tax File Number

Provided on Self Certification Declaration if required.

Exemption reason

Provided on Self Certification Declaration if required.

Physical Address

6 Castle Rock Ct, Wattle Grove NSW 2173, Australia

Postal Address

6 Castle Rock Ct, Wattle Grove NSW 2173, Australia

Trustee and beneficial owners details - Provided on structure tree with all required attachments included.

COMPANY

Reason for attachment

BOSO INVESTMENTS PTY LTD (Trustee of BOSO INVESTMENTS TRUST)

COMPANY DETAILS

Full Company Name

BOSO INVESTMENTS PTY LTD

Company Type

Australian Proprietary Company

Australian Business Number

Australian Company Number

700743380

Tax File Number

Exemption Reason

Provided on Self Certification Declaration if required.

Provided on Self Certification Declaration if required.

Registered Address

6 Castle Rock Ct, Wattle Grove NSW 2173, Australia

Principal Place of Business

6 Castle Rock Ct, Wattle Grove NSW 2173, Australia

Postal Address

6 Castle Rock Ct, Wattle Grove NSW 2173, Australia

Officeholders and beneficial owners details - Provided on structure tree with all required attachments included.

Custodian Attestation: Chapter 4, parts 4.4.18 and 4.4.19 of the AML/CTF Rules

If you are a Company completing this Application Form on behalf of an individual, another company, a trust or other entity, in a Custodial capacity, please complete this section.

In accordance with Chapter 4, part 4.4.19 (1)(a) to (d) of the AML/CTF Rules, does the Custodian meet the definition (see 'Section 10 - Glossary of the PDS') of a Custodian?

☐ Yes

☐ No

In accordance with Chapter 4, part 4.4.19 (e) of the AML/CTF Rules, do you, in your capacity as Custodian attest that prior to requesting this designated service, it has carried out and will continue to carry out, all applicable customer identification procedures on the underlying account holder named or to be named in the Fund's register, including conducting ongoing customer due diligence requirements in accordance with Chapter 15 of the AML/CTF Rules?

☐ Yes

☐ No

Custodian Rules

If you answered YES to all of the above questions, Chapter 4, part 4.4 applies. Custodian rules to this account and will rely upon the customer due diligence conducted by the Custodian on the underlying account holder named or to be named in the Fund's register. If requested to do so at any time after the provision of this designated service, the Custodian agrees to honour any reasonable request made by the RE/ Trustee for information or evidence about the underlying account holder in order to allow the RE/Trustee to meet its obligations under the AML/CTF Act.

☐ Yes

☐ No

Excepting the below circumstances where the custodian answered NO or did not complete any of the above questions, no other information about the underlying account holder is required to be collected. However, further information about you as the Custodian and as a company is required to be collected and verified as required by the AML/CTF rules. Please complete the rest of this form for the Custodian. **Excepting circumstances:** If you answered NO or did not complete any of the above questions, then we are unable to apply the Chapter 4, part 4.4 Custodian rules to this application. We are therefore obligated to conduct full Know Your Client procedures on the underlying account holder named or to be named in the Fund's register including any named nominee, as well as the trustees, beneficial owners and controlling persons of the underlying named account in addition to the Custodian. Therefore, please complete the relevant forms and provide identity documents for all parties connected to this account.

Individuals/Joint

Reason for attachment

SMITH, ALISON LOUISE (Director of BOSO INVESTMENTS PTY LTD) Ultimate Beneficial Owner

Individual Details

Title	First Name	Surname
	ALISON	SMITH
Date of Birth (DD/MM/YYYY)	Occupation	
14 Oct 1966		
Tax File Number	Exemption Reason	
Provided on Self Certification Declaration if required.	Provided on Self Certification Declaration if required.	
Country of Birth		
Australia		
Residential Address		
6 CASTLE ROCK COURT, WATTLE GROVE NSW 2173, Australia		
Postal Address		
6 CASTLE ROCK COURT, WATTLE GROVE NSW 2173, Australia		

Politically Exposed Person

Does the investor named above hold a prominent public position or function in a government body (local, state, territory, national or foreign) or in an international organisation or are you an immediate family member or a business associate of such a person?

☐ Yes, please give details

☒ No

Sole Trader

Business Name

ABN

Individuals/Joint

Reason for attachment

SMITH, DAVID CHARLES (Director of BOSO INVESTMENTS PTY LTD) Ultimate Beneficial Owner

Individual Details

Title	First Name	Surname
	DAVID	SMITH
Date of Birth (DD/MM/YYYY)	Occupation	
20 Dec 1959	Retired	
Tax File Number	Exemption Reason	
Provided on Self Certification Declaration if required.	Provided on Self Certification Declaration if required.	
Country of Birth		
Australia		
Residential Address		
6 CASTLE ROCK COURT, WATTLE GROVE NSW 2173, Australia		
Postal Address		
6 CASTLE ROCK COURT, WATTLE GROVE NSW 2173, Australia		

Politically Exposed Person

Does the investor named above hold a prominent public position or function in a government body (local, state, territory, national or foreign) or in an international organisation or are you an immediate family member or a business associate of such a person?

☐ Yes, please give details

☒ No

Sole Trader

Business Name

ABN

PAYMENT INSTRUCTIONS

Investor Details: BOSO INVESTMENTS TRUST
6 Castle Rock Ct, Wattle Grove NSW 2173, Australia

Amount: AUD \$1,000,000.00

ELECTRONIC FUNDS TRANSFER INSTRUCTIONS

Account Name: PEP Gateway Evergreen Access Fund

BSB Number: 012-003

Account Number: 838 583 887

SWIFT code: ANZBAU3M

Reference: BOSO INVESTMENTS T



Biller code: 431619

Ref: 194211074

Telephone & Internet Banking - BPAY®

Contact your bank or financial institution to make this payment from your cheque, savings, debit or transaction account. More info: www.bpay.com.au

If you require assistance, please contact the PEP Gateway IR team on +61 413 003 200 or via email ir@pepgateway.com.au

IDENTIFICATION CHECK COMPANY



STATUTORY RECEIPT

DATE OF ID CHECK

25 Sep 2026 at 16:08

STATUS

Verified

RECEIPT EXPIRY DATE

25 Oct 2026

Record

FULL NAME

BOSO INVESTMENTS PTY LTD

COMPANY NUMBER

700743380

PUBLIC OR PRIVATE

Proprietary other

TYPE

Australian Proprietary Company

DATA SOURCE



In accordance with the Australian Anti-Money Laundering and Counter Terrorism Financing Act 2006 (AML Act) this ID check has been performed against data held by various Australian government departments including the Australian Securities & Investments Commission, and is therefore classified as "reliable and independent", and complies with the collection and verification of identification procedures applied in the AML Act.

Connexian takes your privacy and data security seriously, consequentially all document IDs and/or reference numbers have been removed. Should you require further detail in relation to this transaction please contact help@connexian.com.au.

TAX INFORMATION - FATCA & CRS - SELF CERTIFICATION - AUSTRALIAN UNREGULATED TRUST**BOSO INVESTMENTS TRUST**

This form is used for collection of tax status in accordance with the United States of America Foreign Account Tax Compliance Act (FATCA) and Common Reporting Standard (CRS).

1 Entity Details

Full Name	ABN	ARSN
BOSO INVESTMENTS TRUST	97960455806	
Physical Address		
6 Castle Rock Ct, Wattle Grove NSW 2173, Australia		
Principal Place of Business		
Country of Establishment	Trust Type	
Australia	Discretionary Investment Trust	
Trustee Name		
BOSO INVESTMENTS PTY LTD (700743380)		

2 Tax Status

Please state GIIN and/or choose FATCA status below:

☐ Financial Institution. If the company is a Financial Institution, please provide all the requested information below:

- ☐ Deemed Compliant Financial Institution
- ☐ Excepted Financial Institution
- ☐ Exempt Beneficial Owner
 - ☐ Account for / on behalf of Deceased Estate
 - ☐ Australian Regulated Superfund (including complying SMSF), Retirement or Pension Fund
 - ☐ Another Type (Please specify):

- ☐ Non Reporting IGA Financial Institution
- ☐ Nonparticipating Financial Institution
- ☐ US Financial Institution
- ☐ Other (describe the FATCA status and provide corresponding GIIN if applicable)

For all Financial Institutions

- ☐ Is the Financial Institution an Investment Entity located in a Non-Participating CRS Jurisdiction and managed by another Financial Institution?

☐ Public Listed Company, Majority Owned Subsidiary of a Public Listed Company, Regulated Company, Governmental Entity, International Organisation, Central Bank, an Australian Registered Charity or Deceased Estate

☐ Active Non-Financial Entity (NFE)

- ☐ Non-Financial Public Company
- ☐ Governmental Entity or Central Bank
- ☐ International Organisation
- ☐ Other Active NFE

☒ Other (Entities that are not previously listed - Passive Non-Financial Entities)

TAX INFORMATION - FATCA & CRS - SELF CERTIFICATION - AUSTRALIAN UNREGULATED TRUST
BOSO INVESTMENTS TRUST

2 Tax Status

Is the entity a tax resident of Australia? ☒ Yes ☐ No

Is the entity a tax resident of another Country? ☐ Yes ☒ No

	Country	TIN	Exemption Reason
1	Australia	308476282	

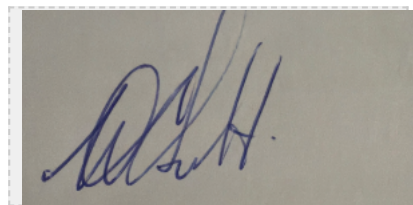
3 Declaration

By signing this form, I/we:

- declare that all details provided in this self-certification tax form are true and correct;
- confirm that I/we have provided all countries in which I/we are a tax resident and the respective TIN;
- confirm to inform you within 30 days of any change in circumstances which I/we become aware of that affect my/our tax residency status;
- consent to the collection, use, storage and disclosure of my/our personal information as described in this form. In addition, any personal information collected for the purposes of the Foreign Account Tax Compliance Act (FATCA) and the OECD Common Reporting Standard (CRS) will be:
 - I. used for the purpose of meeting the Issuer's obligations under CRS and the Intergovernmental Agreement (IGA) between Australia and the U.S. implementing the U.S. legislation known as FATCA;
 - II. used for other purposes relating to my/our holding such as to verify my/our identity and to review and correct discrepancies in the information recorded about you and your holdings;
- (if signing under a power of attorney) declare that I/we have not received notice of revocation of that power.

DAVID SMITH
davidcsmith1123@gmail.com

25 Sep 2026



This form is used for collection of tax status in accordance with the United States of America Foreign Account Tax Compliance Act (FATCA) and Common Reporting Standard (CRS).

IDENTIFICATION CHECK
TRUST
STATUTORY RECEIPT

DATE OF ID CHECK	25 Sep 2026 at 17:33
STATUS	✓ Verified
RECEIPT EXPIRY DATE	25 Sep 2028

Record

FULL NAME	BOSO INVESTMENTS TRUST
AUSTRALIAN BUSINESS NUMBER	97960455806
DATA SOURCE	 Australian Government Australian Taxation Office

In accordance with the Australian Anti-Money Laundering and Counter Terrorism Financing Act 2006 (AML Act) this ID check has been performed against data held by various Australian government departments including the Australian Business Register and/or the Australian Taxation Office, and is therefore classified as "reliable and independent", and complies with the collection and verification of identification procedures applied in the AML Act.

Connexian takes your privacy and data security seriously, consequentially all document IDs and/or reference numbers have been removed from this receipt. Should you require further detail in relation to this transaction please contact help@connexian.com.au.

nathan yii

L A W Y E R S

NATHAN YII LAWYERS PTY LTD
ACN 609 975 582
ABN. 65 289 240 350

LEVEL 1 34 QUEEN STREET
MELBOURNE VIC 3000 AUSTRALIA
WWW.NYLAWYERS.COM.AU

Boso Investments Trust

Settlor: Scott Walker

Trustee: Boso Investments Pty Ltd (ACN 700 743 380)

I certify that this document is a true
and complete copy of the original
document having been sighted by
me this day 28-08/2026

NATHAN LUKE YII
Level 1, 34 Queen Street,
MELBOURNE VIC 3000
An Australian Legal Practitioner
within the meaning of the Legal
Profession Uniform Law (Victoria)

REF: NY/24.00119

LIABILITY LIMITED BY A SCHEME APPROVED
UNDER PROFESSIONAL STANDARDS LEGISLATION

STRUCTURING & TAX
SMSFs & TRUSTS
ASSET PROTECTION
ESTATE & SUCCESSION PLANNING
DISPUTE RESOLUTION & LITIGATION
DECEASED ESTATE ADMINISTRATION & PROBATE

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THIS DEED OF TRUST is made on the date specified in Part 1 of the Schedule.

PARTIES

1. The person or persons named and described in Part 2 of the Schedule as the settlor (the Settlor); and
2. The person or persons, entity or entities named and described in Part 3 of the Schedule as the Trustee (the Trustee).

RECITALS:

- A. The Settlor wishes to establish the Trust to benefit the Beneficiaries as the Trustee in its absolute and uncontrolled discretion, sees fit.
- B. The Settlor intends the Trustee to have absolute unfettered and uncontrolled discretion in making any decision or determination or exercising its power or discretion under the terms of this Deed without the requirement to survey, communicate with or in any way contact any one or more of the Beneficiaries beforehand.
- C. The Trustee has consented to become the trustee of the Trust subject to the powers and discretions outlined in this Deed.
- D. The Settlor has paid or will pay the Settled Sum to the Trustee, and the Trustee has accepted or will accept payment of same to be held on trust subject to the provisions of this Deed.

OPERATIVE PROVISIONS:

1. Interpretation

1.1 Definitions

In this Deed unless the context otherwise requires:

- (a) **Accounting Period** means:
 - (i) each period of twelve (12) months ending on the 30th day of June;
 - (ii) the period commencing on the date of this Deed and ending on the 30th day of June next; and
 - (iii) the period commencing on the first day of July prior to the Vesting Date and ending on the Vesting Date.
- (b) **Additional Designated Beneficiary or Additional Designated Beneficiaries** means such person or entities:
 - (i) named and described in Part 7 of the Schedule; or
 - (ii) nominated by the Appointor in accordance with subclause 13.2.

- (c) **Appointor** means the person or persons jointly or successively named in Part 9 of the Schedule, or determined according to clause 12.
- (d) **Associate** has the same meaning as that ascribed to it by section 995-1 of the Tax Acts.
- (e) **Beneficiaries** means, subject to the definition of **Excluded Persons** in this subclause, Part 10 of the Schedule and noting the explanation below, the following persons:
 - (i) the Primary Beneficiary or Primary Beneficiaries (if more than one);
 - (ii) the Designated Beneficiary or Designated Beneficiaries (if more than one);
 - (iii) any person who is a grandparent of or a descendant of a grandparent of a Primary Beneficiary;
 - (iv) any person who is a Domestic Partner, descendant of a grandparent of a Domestic Partner or an Associate or dependant of any of the persons specified in the preceding three subparagraphs;
 - (v) any additional person or entity (including companies and trustees of trusts) which the Trustee has nominated under subclause 7.1 to be a Beneficiary of the Trust;
 - (vi) the trustee of any other trust of which any one or more persons or entities referred to in this paragraph is a beneficiary or holds a direct or indirect interest (whether present, contingent, expectant or otherwise);
 - (vii) any company in which any one or more persons or entities referred to in this paragraph has a beneficial interest in a share (whether present, contingent, expectant or otherwise) or is a director; and
 - (viii) any charitable or religious fund or body either within or outside Australia;

provided that notwithstanding the above, no person or entity will be, become, remain or be appointed as a Beneficiary for the purposes of this Deed if and while that person is, becomes or remains an Excluded Person; and

NOTE: a person or entity shall be comprehended to be a Beneficiary of the Trust even if the person or entity had not been born, incorporated or otherwise come into existence or comply with the relevant description after the establishment (but not later than the Vesting Date)

- (f) **Class** in relation to the income or capital of the Trust means such part or parts of the income or capital which the Trustee has separately identified, characterised and recorded in the books of account of the Trust as provided in clause 6.
- (g) **Child** includes an adopted, ex-nuptial, foster child, step-child and a child born as a result of an artificial conception procedure as defined in the *Family Law Act 1975* (Cth) and who is acknowledged by a

beneficiary as their child and a Child of a Domestic Partner of a Beneficiary, and "Grandchildren" and "Descendants" shall have a corresponding meaning.

(h) **Corporations Law** means the law set out in the *Corporations Act 2001* (Cth).

(i) **Deed** means the provisions of this Deed as for the time being revoked added to and altered pursuant to the provisions in this Deed.

(j) **Dependant** means a person whom the Trustee is satisfied:

- (i) is a dependant, foster child or protégé of a Beneficiary; or
- (ii) is or would be, but for distributions from the Trust, financially dependent to a significant degree on a Beneficiary.

(k) **Designated Appointor** means an Additional Designated Beneficiary (if any) who has also been nominated as an Appointor (including by succession, substitution or otherwise) under this Deed.

(l) **Designated Beneficiary or Designated Beneficiaries** means, subject to Part 10 of the Schedule:

- (i) the Primary Beneficiary or such of the Primary Beneficiaries (if more than one) named or described in Part 6 of the Schedule who are living at the relevant time; or
- (ii) if no Primary Beneficiary is living at the relevant time, then:

(A) such of the Additional Designated Beneficiaries (if any) who are not Primary Beneficiaries and who are living at the relevant time; and

(B) the Legal Personal Representative of the deceased estate of the Additional Designated Beneficiary where the Additional Designated Beneficiary is deceased at the relevant time and their deceased estate includes or included a Beneficiary who is both:

(i) their Child; or

(ii) their lineal descendant

and is living at the relevant time; but

(C) if there are no Additional Designated Beneficiaries or deceased estates of the Additional Designated Beneficiaries that comply with the requirements of sub-subparagraph (B) of this subparagraph, then the Legal Personal Representative of the deceased estate of the Primary Beneficiary or the Primary Beneficiaries (if more than one) named or described in Part 6 of the Schedule.

(m) **Designated Proportions** means the proportions attributed in Part 7 of the Schedule or in an Appointor's nomination in accordance with subclause 13.2 to an Additional Designated Beneficiary in the event

such Additional Designated Beneficiary is appointed as a Designated Appointor. For the avoidance of doubt, it is contemplated in this Deed that the Appointor may vary the Designated Proportions from time to time prior to a Designated Beneficiary becoming a Designated Appointor. In the event that there is more than one Designated Appointor and no Designated Proportions have been specified, the Designated Proportions shall be deemed equal to the number of the Designated Appointors.

- (n) **Disqualified Person** means a person who:
- (i) suffers a Family Breakdown (for the duration of the Family Breakdown);
 - (ii) is under a Legal Disability;
 - (iii) becomes bankrupt or otherwise seeks relief under the laws pertaining to bankruptcy; or
 - (iv) an order is made or a resolution is passed which will have the effect of winding up or liquidating the company, if the person is a company.
- (o) **Domestic Partner** in relation to a beneficiary means:
- (i) any person to whom a Beneficiary is or was married from time to time and upon their death, their widow or widower; and
 - (ii) any person with whom a Beneficiary is or was living or cohabiting (or with whom a Beneficiary was living or cohabiting immediately prior to the Beneficiary's death) in a bona fide domestic relationship, whether that person is of the same or opposite gender; but
- a person does not cease to be a "Domestic Partner" by virtue of a change in their marital or social status.
- (p) **Excluded Persons** means:
- (i) the Settlor and such of the Settlor's children (if any) who are under the age of eighteen (18) years at the relevant time;
 - (ii) any person, for as long as they are considered:
 - (A) a "foreign person" or "foreign trustee" as defined in the *Duties Act 1997* (NSW);
 - (B) a "foreign person" as defined in the *Duties Act 2001* (Qld);
 - (C) a "foreign person", "foreign company" or trustee of a "foreign trust" as defined in the *Land Tax Act 2010* (Qld);
 - (D) a "foreign person", trustee of a "foreign trust", "wholly foreign owned corporation" or trustee of a "wholly foreign owned trust" as defined in the *Stamp Duties Act 1923* (SA);

(E) a "foreign natural person", "foreign corporation" or trustee of a "foreign trust" as defined in the *Duties Act 2000* (Vic);

(F) a "natural person absentee", "absentee corporation" or trustee of an "absentee trust" as defined in the *Land Tax Act 2005* (Vic) and specifically declared in writing under this Deed as a beneficiary;

(G) a "foreign corporation", "foreign individual", "foreign person" or "foreign trustee" as defined in the *Duties Act 2008* (WA);

(H) a "foreign person", "foreign corporation", "foreign natural person", trustee of a "foreign trust" or "foreign trustee" as defined in the *Duties Act 2001* (Tas);

(I) a "foreign person", "foreign individual", "foreign corporation" or trustee of a "foreign trust" as defined in *Land Tax Act 2005* (ACT); or

(J) A "foreign person" as defined by the *Foreign Acquisitions and Takeovers Act 1975* (Cth);

(III) every company and the trustees of every trust in or under which any Excluded Person under this paragraph has a direct or indirect interest (whether present, contingent, expectant or otherwise);

(IV) any person determined under subclause 7.2 to be an Excluded Person; and
(V) any person or entity who has lodged a notice pursuant to subclause 7.4.

(q) **Family Breakdown** means the period of time between:

(i) the individual ceasing to live with their Domestic Partner on a bona fide domestic basis; and
(ii) when a property settlement between the individual and their Domestic Partner has been concluded within the meaning of the *Family Law Act 1975* (Cth) or any other applicable legislation as the context requires.

(r) **Legal Disability** of an individual means when such person does not understand the legal nature or effect of their decisions or is unable to communicate them in some way, evidenced by certification from a medical practitioner.

(s) **Legal Personal Representative** of an individual means:

(i) in the case of the death of an individual, their executor or administrator; and

(ii) in the case of the Legal Disability of an individual, the duly appointed attorney under an enduring power of attorney relating to financial matters, or administrator appointed by a

Tribunal or government authority in the Governing Jurisdiction; but

(iii) does not include a trustee in bankruptcy.

(t) **Net Income** means:

(i) the net income of the Trust determined by the Trustee using any method whatsoever chosen by the Trustee and, for the avoidance of doubt, can include amounts that would otherwise be gains of a capital nature; or

(ii) in default of any determination, net income as defined in subsection 95(1) of the Tax Acts.

(u) **Perpetuity Period** means the later to occur of the following dates:

(i) the 80th anniversary of the date of this Deed; or

(ii) the latest date permitted at law, with reference to the Governing Jurisdiction relating to the rule against perpetuities (if any) in such jurisdiction.

(v) **Primary Beneficiary** or **Primary Beneficiaries** means the person or persons named and described in Part 6 of the Schedule.

(w) **Settled Sum** means the Settled Sum as specified in Part 5 of the Schedule.

(x) **Subtrust** means that part of the Net Income or capital of the Trust that has been allocated or set aside for separate administration by the Trustee under the terms of this Deed.

(y) **Tax Acts** means either or both of the *Income Tax Assessment Act 1936* (Cth), the *Income Tax Assessment Act 1997* (Cth) (as the case may be).

(z) **Trust** means the trust constituted by this Deed as named in Part 4 of the Schedule.

(aa) **Trustee** means the person or persons named as such in Part 3 of the Schedule, subject to the provisions of this Deed regarding several, additional, surviving, substituted or otherwise appointed trustees.

(bb) **Trust Fund** means

(i) the Settled Sum;

(ii) any further or additional property donated to, assigned to, transferred to or vested in or caused to be vested in the Trustee to be held upon the trusts and subject to the powers and provisions of this Deed;

(iii) the proceeds of sale, redemption or other dealing with the Settled sum or other property;

(iv) any accumulation of Net Income by the Trustee; and

(v) all accretions to, or the Net Income, profits or gains of, any of those things referred to in this paragraph.

- (a) the references to "clause", "subclause", "paragraph" or "subparagraph" in this Deed are intended to be illustrated by the following headings and text:
- "1. CLAUSE"**
1.1 Subclause
(a) Paragraph
(i) Subparagraph
(A) subparagraph";
- (b) the singular will mean and includes the plural and vice versa, and each gender includes the other genders;
- (c) references to persons will include a company, partnership and other legal persons;
- (d) references to persons will include the Legal Personal Representatives, successors and assigns of that person;
- (e) references to statutes, ordinances, codes or other laws include regulations and other statutory instruments under them and consolidations, rewrites, amendments, re-enactments or replacements of any of them (whether of the same or any other legislative authority having jurisdiction);
- (f) references to writing include any mode of representing or reproducing words in tangible and permanently visible form, and includes facsimile, e-mail and other forms of technological advancing transaction;
- (g) references to authorities and bodies, whether statutory or otherwise, will deem to include references to the delegates of those authorities and bodies whether appointed by statute or otherwise;
- (h) headings are inserted for ease of reference and do not form part of this Deed and shall not affect the construction of the Deed;
- (i) if by reason of the inclusion of any word, description or provision in this Deed, all or any part of this Deed would be invalid, then this Deed is to be construed as if the word, description or provision were not included in this Deed; and
- (j) the Schedule annexed hereto shall form part of this Deed.

1.2

Context and Interpretation

- (cc) **Vesting Date** means the earliest of:
- (i) the date specified in Part 8 of the Schedule;
- (ii) such other date as the Trustee may determine to be Vesting Date pursuant to the provisions in this Deed; or
- (iii) the expiration of the Perpetuity Period.

2. Declaration of trust

2.1 Settlor declaration

The Settlor hereby declares and acknowledges that:

- (a) no part of the Trust Fund or the Net Income will ever refer to or be held on trust for the Settlor or the Settlor's estate; and
- (b) the Trustee shall have the power at any time, and from time to time, until the Vesting Date, in its absolute discretion, to accept such additional property as may be donated to, assigned to, transferred to or vested in it to be held upon and subject to the trusts contained in this Deed; and

the Trustee hereby acknowledges and accepts such declaration.

2.2 Trustee declaration

The Trustee hereby declares that it will hold the Trust Fund and the Net Income thereof upon trusts with, and subject to, the powers and provisions contained in this Deed.

3. Net Income and capital of the Trust Fund prior to the Vesting Date

3.1 Determination and distribution of Net Income prior to the Vesting Date

Subject to:

- (a) subclauses 11.11 and 13.2; and
- (b) Part 10 of the Schedule;

prior to the Vesting Date, the Trustee shall determine the Net Income of the Trust Fund at the end of each Accounting Period and shall in its absolute discretion with respect to any part or parts of the Net Income:

- (c) pay, apply or set aside the whole or any part or parts of the Net Income or any Class of the Net Income to or for the benefit of one or more of the Beneficiaries who are living or which are in existence at the time of the determination to the exclusion of the other or others of them in such shares or proportions as the Trustee may in its absolute discretion determine; or
- (d) accumulate the whole or any part or parts of the Net Income as an accretion to the Trust Fund as the Trustee may in its absolute discretion determine.

3.2 Deficiency of distribution of Net Income can be met from capital

If the Net Income of the Trust Fund is insufficient to meet the amounts the subject of a determination by the Trustee in accordance with this clause, then the deficiency shall be met from the capital of the Trust Fund unless otherwise resolved by the Trustee.

The Trust shall terminate on the Vesting Date and the remaining Net Income and capital of the Trust Fund shall be dealt with in accordance with this clause.

4.1	Trust to terminate on the Vesting Date
4.	Net Income and capital of the Trust Fund on the Vesting Date
3.6	No requirement to survey the class of Beneficiaries in respect of Net Income For the avoidance of any doubt, the Trustee shall not be required to survey, communicate with or in any way contact any one or more of the Beneficiaries prior to making any decision or determination in respect of the Net Income under this clause.
3.5	Unpaid allocations to be held on Subtrust Any amount (including any part, parts or Class) allocated to any of the Beneficiaries will not form part of the Trust Fund but will be held by the Trustee on Subtrust as a separate trust fund for the Beneficiary absolutely, with power to invest or apply for the benefit of such Beneficiary or deal with such fund or any resulting Net Income from such fund or any part thereof in the manner provided for in this Deed in relation to the Trust Fund.
3.4	Default distributions of Net Income if no effective determination made If, by the later of: (a) end of the last day of the Accounting Period; or (b) such earlier or later date as the Trustee may by resolution nominate to be the last day on which a distribution can be made, the Trustee has not made a determination under subclause 3.1 in respect of the whole of the Net Income for such Accounting Period, then the balance of such Net Income not subject of a determination by the Trustee shall be accumulated. the Trustee may at any time and from time to time prior to the Vesting Date, pay, set aside or apply for the benefit of any of the Beneficiaries such amount of the capital of the Trust Fund in such manner and subject to such conditions as the Trustee may determine and may raise any sums for such purpose. (a) obtaining the written consent of the Appointor; (b) subclauses 11.11 and 13.2; and (c) Part 10 of the Schedule; Subject to:
3.3	Distribution of capital prior to Vesting Date

4.2 Determination and distribution of Net Income and capital on the Vesting Date

On the Vesting Date, the Trustee shall stand possessed of the Trust Fund together with the Net Income thereafter to arise therefrom including the whole or any part of any income arising from an identified part, parts, Class or source upon trust as follows:

- (a) first, pay out or otherwise discharge or satisfy all debts and liabilities in relation to the Trust;
- (b) second, for such of the Beneficiaries to the exclusion of the other or others of them in such Classes, shares and proportions and in such manner as the Trustee, subject to:
 - (i) subclauses 11.11 and 13.2; and
 - (ii) Part 10 of the Schedule;

may by instrument in writing revocable or irrevocable prior to or on the Vesting Date appoint **PROVIDED THAT** if there is for the time being an Appointor, at the date such appointment shall be made, the appointor shall consent thereto in writing; and
- (c) where more than one Beneficiary is to receive any part of the remaining Net Income and capital, that part may include the whole or any part of any Net Income arising from an identified asset, Class or source.

4.3 Default distribution of Net Income and capital on the Vesting Date

In default of any determination by the Trustee under subclause 4.2, the Trust Fund together with any remaining Net Income shall be held by the Trustee upon trust as follows:

- (a) for such of the Designated Beneficiaries who are not Excluded Persons and if more than one, as tenants in common in equal shares; and
- (b) insofar as any part of the trust Fund or the Net Income thereof or any category of the Net Income is not effectively or validly disposed of by the operation of this clause, then upon trust for such charitable objects or purposes as the Trustee may determine.

4.4 No requirement to survey the class of Beneficiaries in respect of Net Income or Capital at the Vesting Date

For the avoidance of any doubt, for the purposes of subclause 4.2 the Trustee shall not be required to survey, communicate with or in any way contact any one or more of the Beneficiaries prior to making any decision or determination in respect of the Net Income and/or Capital.

5. Means of distributing Net Income and capital

5.1 No reason for decisions

The Trustee is able to exercise its discretion as to the making of any determination in respect of the distribution of Net Income without being bound to assign any reason for the determination. In particular, in making any determination to distribute any amount, the Trustee may:

- (a) exclude any Beneficiary in one, more or all Accounting Periods; and
- (b) determine to distribute such amount between the Beneficiaries in such proportions and in such manner as the Trustee in its absolute discretion sees fit.

5.2 Excluding Beneficiaries

In making its determination to distribute the Net Income and capital of the Trust, the Trustee may:

- (a) elect to temporarily or permanently exclude a Beneficiary in respect of all or any part of the Trust Fund under clause 7;
- (b) elect to temporarily or permanently refrain from distributing or providing all or any part of the Net Income, capital or other benefits to or for the benefit of a Beneficiary; or
- (c) need to take note of any family trust or other election that may be made.

5.3

Accounting for determinations

A determination to distribute any amount for any Beneficiary may be effected by the Trustee by any one or more of the following means:

- (a) placing such amount to the credit of the Beneficiary in the books and accounts of the Trust Fund; or
- (b) paying the amount in cash, by electronic funds transfer or by cheque to or for the benefit of the Beneficiary.

5.4

Distributions to Beneficiaries under a Legal Disability

If, in the Trustee's opinion, any person to whom or for whose benefit any amount may be paid or applied or for whom any amount is held in trust is a minor or under a Legal Disability or is suffering from any physical or mental sickness, injury or other condition of health, the Trustee in its absolute discretion may:

- (a) pay or apply the whole or such part of that amount for the benefit of or towards the maintenance, education or advancement of such person;
- (b) pay or apply the whole or such part of that amount to a person who the Trustee believes is:

- (i) the parent or guardian of the Beneficiary;
- (ii) the Legal Personal Representative of the Beneficiary;
- (iii) such other person who has the care or custody of the Beneficiary; or

- (iv) such other person who has the financial expense of the care or custody of such person; or
- (c) hold the whole or such part of that amount on Subtrust as a separate trust for the Beneficiary until the Beneficiary attains the age of eighteen (18) years or ceases to be under a Legal Disability with the express power to pay or apply the whole or such part of the Net Income arising therefrom or the capital thereof to any person to whom the Trustee is authorised to make payment or application set out in the preceding two paragraphs; and

any payment or application allowed under this subclause shall not require the Trustee to enquire into the application of such payment or application but instead, the receipt of an authorised person to whom the Trustee is authorised to make such payment or application shall be a full discharge to the Trustee.

5.5 Trustee may withhold tax from distributions

- (a) where the Trustee is required to pay tax in respect of the Net Income or capital of the Trust Fund paid, allocated or distributed to a Beneficiary or of money held by the Trustee on trust for that Beneficiary whether as part of the Trust Fund or on Subtrust, then the Trustee may pay such tax out of the Net Income or capital of that Beneficiary either before it has been paid to the Beneficiary or by deducting it from the present or specific entitlements or other funds of the Beneficiary under the control of the Trustee.
- (b) where the Trustee is required to pay tax in respect of the Net Income that has been accumulated, then the Trustee may pay tax from such Net Income or from the capital of the Trust as the Trustee sees fit.

5.6 Effect of determinations

A Beneficiary the subject of a distribution shall have an immediate, vested and indefeasible interest to the Net Income or capital (as the case may be) paid, applied or set aside on their behalf upon the making of the determination.

5.7 Exclusion of Settlers and no resulting trust

A determination of the Trustee is not effective to the extent to which the determination creates a resulting trust:

- (a) in favour of the Settlor; or
- (b) where the resulting trust would result in a liability arising at any time under any applicable law in the Governing Jurisdiction on account of death or estate duties.

6. Classes of benefits

6.1 Power to classify income and capital

The Trustee may, in its absolute discretion, determine, distinguish between and separately identify and record income or capital having regard to the Class or characteristic of such income or capital.

A resolution or determination of the Trustee by which the income or capital of the Trust Fund is distributed or accumulated may separately deal with all or part of the Net Income or capital of a particular Class so that all or part of that income or capital may be specifically or separately allocated and identified in a distribution to a Beneficiary or in any accumulation.

6.3 Allocation or accumulation of income or capital of a particular Class

- (k) capital gains or returns of capital having regard to:
- (i) whether such capital gain or return of capital is taxable or not as Net Income;
 - (ii) its source (eg from Australia or a foreign source);
 - (iii) any credits, rebates, offsets, exemptions or concessions attached; or
 - (iv) any other characteristics which are separately identifiable;
- (l) dividends from a company having regard to:
- (i) the residency of the company;
 - (ii) the level of franking of the dividends;
 - (iii) any credits, rebates, offsets, exemptions or concessions attached; or
 - (iv) any other characteristics which are separately identifiable; and
- (a) income on which a credit is available for tax withheld;
 - (b) income from personal exertion;
 - (c) exempt income or income otherwise not liable to taxation;
 - (d) interest income;
 - (e) rental income;
 - (f) business income;
 - (g) income from property including royalties;
 - (h) primary production income;
 - (i) income from foreign sources;
 - (j) dividends from a company having regard to:

Without limiting the generality of this clause, the Trustee may determine, distinguish between and separately identify and record income or capital of the following Classes in the accounts of the Trust:

6.2 Recording of Classes of income and capital

6.4 Expenses and outgoings

To the extent permitted by law, the expenses or outgoings may, at the discretion of the Trustee, be allocated against and deducted from the income or capital of any one or more Class to which the expense or outgoing is attributable.

6.5 Distributed Net Income retains character

Net Income or capital to which a Beneficiary becomes entitled, and which can be identified as being of a Class shall retain its separate identity and character on passing to or being received by the Beneficiary or when the Beneficiary otherwise becomes entitled to it.

6.6 Categorising Subtrusts

The reference in this clause to the Trust Fund shall include a reference to a Subtrust.

6.7 Reclassification of Net Income and capital

The Trustee may include in the calculation of Net Income, any receipt, profit, gain or other amount even if such receipt, profit gain or amount may not be Net Income of the Trust Fund and whether or not the Trustee records the receipt, profit, gains or other amount in a separate account.

7. Nomination, exclusion and disclaimer of Beneficiaries

7.1 Nomination of additional Beneficiaries

Subject to:

- (a) obtaining the written consent of the Appointor;
- (b) subclause 13.2; and
- (c) Part 10 of the Schedule;

the Trustee may at any time by instrument in writing, nominate a person or entity (including a trustee of a trust or a company) as an additional Beneficiary of the Trust, prior to the Vesting Date such that the relevant person or entity shall be included as a Beneficiary of the Trust from the date of such nomination and provided that a nomination of the Settlor or their Children under the age of eighteen (18) years as Beneficiaries shall not be effective.

7.2 Exclusion of Beneficiaries

In addition to the persons and entities defined by subclause 1.1 to be Excluded Persons and subject to:

- (a) obtaining the written consent of the Appointor;
- (b) subclause 13.2; and
- (c) Part 10 of the Schedule;

the Trustee may from time to time determine that any person who would otherwise be one of the Beneficiaries shall be an Excluded Person, either permanently or for such period as the Trustee determines.

7.3 Extent of exclusion of Beneficiaries

The Trustee may determine, in respect of all or such part of the Net Income and capital of the Trust Fund, the extent of such determination and its date of effect, provided that no such determination shall be effective to divest any interest to which such person has become indefeasibly and irrevocably entitled whether in possession or otherwise prior to the making of such determination.

7.4 Disclaimer of interest by a Beneficiary

A Beneficiary not being under a Legal Disability shall be entitled to disclaim themselves or itself as a Beneficiary of the Trust by written instrument provided that such written instrument is expressed to be unconditional, irrevocable and is served on the Trustee.

8. Powers and duties of the Trustee

8.1 Extent of powers

The Trustee shall have the express power to deal with and administer the Trust Fund as the Trustee could do if the Trustee were the beneficial owner of the Trust Fund acting in its personal capacity and absolutely entitled to the assets comprising the Trust Fund and any increments in the value of those assets, and in the exercise of its powers conferred by this Deed, the Trustee will not be restricted or obligated by provisions relating to trustees contained in any legislation of the Commonwealth of Australia or any of its States or Territories or anywhere in the world.

8.2 Duty of care

In making, retaining, transposing or otherwise dealing with any investment pursuant to this Deed the Trustee shall not be bound to take any greater care or to exercise any greater prudence than an ordinary person would take or exercise if they were employing that person's own funds and without prejudice to the generality of the foregoing all or any part of the funds requiring investment may be employed in any one or more trades or businesses or other investments.

8.3 Powers unaffected by personal interest or benefits

The Trustee shall have the power to exercise or concur in exercising or refrain from exercising all of the powers and discretions given by this Deed or by law notwithstanding that the Trustee or any person who is a shareholder or director of the Trustee (if the Trustee is a company) has or may have a direct or indirect interest (whether as a beneficiary or as a trustee of any other settlement or in its personal capacity or as a director or shareholder of any other company or otherwise) in the manner or result of exercising or refraining from exercising any such power or discretion or may benefit either directly or indirectly as a result of the exercise or refraining from exercising of such power or discretion and notwithstanding that any Trustee for the time being is a sole Trustee.

8.4 Power to invest

Without limiting the generality of the preceding subclauses, the Trustee shall have the power to invest any moneys forming part of the Trust Fund and deal with, manage, transpose, vary and realise such investments entirely as it thinks fit including, without limitation:

(a) investments authorised by law for the investment of trust moneys;

- (b) the acquisition, disposal, exchange, subdivision or development of real or personal property or any interest therein, including any form of intellectual property, chose-in-action or other proprietary right;
- (c) the acquisition, disposal or exchange of shares (including redeemable, preference or redeemable preference shares and whether fully or partly paid), units, debentures, securities or any other interest in any company, association, unit trust, mutual fund, business or form or options, entitlements or rights to any such securities or interests;
- (d) giving any guarantee;
- (e) depositing funds with any financial institution for a fixed term or at call and opening and maintaining any bank accounts the Trustee thinks fit;
- (f) acquiring, establishing, carrying on, selling or disposing of any business whatsoever;
- (g) acquiring or selling policies of insurance or assurance;
- (h) lending money or other property to any person with or without interest and with or without security and for any period whether fixed or otherwise;
- (i) acquiring, selling or disposing of precious metals, works of art, coins, stamps, jewellery, collectors items, antiques and any other precious objects; and
- (j) acquiring or selling options or contracts of any kind or participating in any derivative transaction undertaken in financial markets whether or not they are quoted or traded on a recognised stock exchange, including without limitation futures contracts, commodities contracts, hedging contracts, swaps and contracts relating to Australian or foreign currencies and whether of a speculative nature or not;

and the Trustee shall not be accountable in any way whatsoever for any loss arising out of the making or the failure to realise or the management of any investment, notwithstanding that such investment is not permitted by law to be made with trust moneys or that the investment produces no income or is of a wasting or speculative nature.

8.5 Investment anywhere in the world

The Trustee shall have the power to invest in accordance with subclause 8.4 anywhere in Australia or elsewhere in the world.

8.6 Powers to invest not limited by Trust Fund

The Trustee shall have the power to purchase or make any investment for a sum lesser or greater than the amount of the Trust Fund for the time being and to agree to pay for any such investment wholly or in part from any future moneys which may come into the hands of the Trustee including dividends, profits, interest or other income paid or payable in respect of that or any other investment.

8.7 Use of property

Subject to subclauses 11.11 and 13.2 and Part 10 of the Schedule the Trustee shall have the power to and in its absolute discretion may allow any Beneficiary

to occupy have custody of or use any real or personal property for the time being forming part of the Trust Fund on such terms or conditions as to inventories repair replacement insurance outgoings or otherwise and whether gratuitously or otherwise as the Trustee shall determine and so that the Trustee shall not be liable for any loss or damage which may occur to any property so forming part of the Trust Fund during or by reason of such occupation, custody or use except insofar as such loss or damage shall be occasioned by the conscious and wilful default or neglect of the Trustee.

8.8 Power to open bank accounts, etc

The Trustee shall have the power to open accounts, whether interest-bearing or not, with any bank, building society or other financial institution and to operate any such accounts in all usual ways including without limitation the power to draw, sign and endorse cheques, bills of exchange, bank bills and other negotiable instruments and to close any bank accounts.

8.9 Power to make family trust or interposed entity elections

The Trustee shall have the power to make a family trust election or interposed entity election as defined in the Tax Acts, although the making of such an election shall not impose any limit whatsoever on the powers the Trustee had before making the election and the Trustee remains indemnified under subclause 10.4 notwithstanding any loss that may result from the exercise of a power or discretion after the election is made.

8.10 Power to act as officeholder of company and receive related remuneration

The Trustee shall have the power to become or to appoint any of its officers to become a director or servant of any company in which the Trustee or any of its officers may hold shares as part of the Trust Fund and to receive the remuneration attaching to such office without being liable to account for the same.

8.11 Powers relating to shares and other securities

The Trustee shall have the power to exercise or refrain from exercising all rights and privileges and perform or refrain from performing all duties in respect of any shares, stocks, options or other corporate securities for the time being subject to the trusts created by this Deed, and shall have the power to:

- (a) agree to any arrangement modifying such rights, privileges or duties;
- (b) agree to any scheme or arrangement for the reconstruction or the increase or reduction of the capital of any company;
- (c) for any purpose described in paragraphs 8.11(a) and 8.11(b), deposit, surrender or exchange any such securities or the title thereto;
- (d) pay any calls or contributions or other necessary expenses in connection with any such securities or any title thereto;
- (e) allow for the forfeiture or sale of any such securities or to purchase further securities whether by means of a new issue or securities or otherwise on whatever terms the Trustee thinks fit;
- (f) attend any meetings or appoint any proxy or other representative for the purpose of exercising any such rights, privileges or duties;

- (g) agree to the winding up of the relevant company and to any consequent distribution of liquidated assets; and
- (h) generally to deal with such securities as if the Trustee was the beneficial owner of those securities.

8.12 Powers relating to units

The Trustee shall have the power to exercise or refrain from exercising all rights and privileges including voting rights and perform or refrain from performing all duties in respect of any units acquired or held in any unit trust, whether fixed or otherwise, for the time being subject to the trusts created by this Deed and to accept all distributions by the trustee of any unit trust as Net Income or capital of the Trust Fund.

8.13 Borrowing

The Trustee shall have the power to borrow or raise or concur in raising from any person or entity including a trustee or Beneficiary under this Deed with or without security or interest any money which the Trustee thinks expedient for any person or entity in relation to the execution of the trusts or powers conferred on the Trustee by this Deed and without being required to give reasons for the purpose of any borrowing.

8.14 Lending

Subject to Part 10 of the Schedule, the Trustee shall have the power to lend all or any part of the Trust Fund or give credit to any person or entity on such terms and conditions with or without interest or with or without security as the Trustee thinks fit to any person or entity including a Beneficiary or the Trustee or a person holding an interest in or office of a Trustee under this Deed.

8.15 Other securities and financial transactions

The Trustee shall have the power to give any bill, indemnity, guarantee or security (including without limitation a commercial bill, mortgage, charge, security interest as defined in the *Personal Property Securities Act 2009* (Cth) with or without a power of sale over all or any part of the Trust Fund) for payment of money or for the performance of any contract, obligation or undertaking whether under or in connection with any transaction of the type referred to in this clause 8 or any other transaction by any reason (whether a Beneficiary, Trustee or other person) and to renegotiate or renew from time to time any such bill, indemnity, guarantee or security (whether secured or unsecured) with or without receiving any direct or indirect consideration or benefit for doing so.

8.16 Further powers relating to financial transactions

The Trustee shall have the power to enter into and perform:

- (a) any transaction involving, or in connection with, an exchange of streams of payment between counterparties whether directly or indirectly;
- (b) any transaction involving, or in connection with, trading commodities, securities or currency at a fixed price for delivery or settlement, whether immediately or at a future date; or

Without limiting the operation of the other provisions of this Deed, the Trustee shall have the power to determine whether real or personal property or any change in value of any such property or any receipt or payment from, for or in

8.19 Further powers relating to valuing property and Net Income, etc

- (h) generally deal with such property or interest or to join in dealing with the same as if beneficially entitled to the property without being responsible for any loss or damage.
- (g) pay for the general expenses relating to the property from the Trust Fund including without limitation any insurance premiums, rates, taxes and other outgoings;
- (f) mortgage the property or otherwise make the property available as security for a loan;
- (e) subdivide or otherwise divide or partition or develop any property or interest in any property whether the Trustee engages in such development itself or engages or makes agreements with other parties to perform some or all of such development;
- (d) grant or acquire easements or any other rights or vary or provide a release from any such rights;
- (c) make allowances to and arrangements with tenants;
- (b) maintain, erect, pull down, rebuild and repair buildings, erections and other property and carry out improvements of any nature;
- (a) manage, use, lease, sublease, licence, sub-licence or let the same or any part of the property on such terms as the Trustee thinks fit;
- If at any time the Trust Fund comprises real or personal property or any interest in real or personal property, the Trustee shall have the power to:

8.18 Powers relating to property

The Trustee shall have the power to apply the whole or any part of the capital or Net Income of the Trust Fund in or towards payment of any liability undertaken by the Trustee in relation to the acquisition, maintenance or disposal of property intended to form part of the Trust Fund and on such terms and conditions as the Trustee thinks fit.

8.17 Acquisition, maintenance and disposal of property

- and without limiting the generality of the foregoing, the powers conferred on the Trustee under this subclause shall include power for any purpose to enter into and perform any interest rate swap or exchange transaction, currency swap or exchange transaction, rate cap, rate floor, rate collar, option contract relating to swaps, futures contract, currency option and forward rate agreement or any interest and or currency protection transaction or any combination of such transactions, contracts or agreements or any other transactions, financial arrangements or contracts of a kind or class similar to the transactions herein referred to.
- (c) any transaction for managing, lessening, hedging or protecting against movements in currency exchange, interest or discount rates or against costs of borrowing, lending or obtaining financial accommodation;

connection with such property shall be treated as capital or Net Income of the Trust Fund and to determine all related matters as the Trustee thinks fit, such a determination being binding on all parties interested therein.

8.20 Trustee can hold property through others

The Trustee shall have the power to hold any property, including securities, of the Trust Fund in the name of a nominee or agent or to register such property in the name of a nominee or agent without the nominee or agent being required to disclose that it is acting in that capacity.

8.21 Depositing documents with others

The Trustee shall have the power to deposit any documents relating to any property of the Trust Fund, including titles and securities, with any bank, legal practitioner, accountant or any other party for safekeeping or otherwise without being liable for any loss of such documents if the loss is not the fault of the Trustee.

8.22 Power to acquire interests in retirement village or residential care facility

The Trustee shall have the power to:

- (a) acquire rights in respect of any Beneficiary's residency in a retirement village or residential care facility, including but not limited to:
 - (i) the payment of accommodation bonds, deferred management and exit fees in respect of a Beneficiary's residency in a retirement village or residential care facility;
 - (ii) retention amounts or other costs or fees incurred pursuant to a lease, licence or accommodation bond agreement in respect of a Beneficiary's residency in a retirement village or residential care facility; and
- (b) subject to Part 10 of the Schedule, loan a sum of money to the Beneficiary with or without interest or security for the purposes of the Beneficiary to secure payment of the amounts stipulated in the preceding paragraph.

8.23 Powers relating to business

The Trustee shall have the power to establish, acquire, carry on or join in carrying on any business either alone or in partnership or in a joint venture with any other person as it thinks proper with power for that purpose to:

- (a) incur expenses in or in connection with any feasibility studies, market research or other investigation into acquiring, establishing or carrying on any business or an interest in any business which the Trustee thinks fit and to pay or recoup those expenses out of the income or capital of the Trust Fund even if the Trustee does not acquire, establish or carry on that business or any similar business;
- (b) use the Trust Fund or any part thereof to acquire or establish that or any other business, including the goodwill, chattels, stock in trade and other assets of the business with power to charge against or pay or retain out of the Trust Fund all debts, costs, expenses or other outgoings incurred in or for the purpose of acquiring, establishing or

carrying on that business or for the purpose of establishing a proposed business;

(c) give any indemnities required to acquire, establish or carry on the business or which may be desirable for the Trustee to give and to undertake to meet any liabilities or contingent liabilities in relation to the business;

(d) provide or receive credit;

(e) employ in the business such part of the capital of the Trust Fund as it thinks fit;

(f) make payments or incur expenses or liabilities (including donations) even though the Trustee may not be legally required nor can be compelled to do so and even though the payments or the expenses or liabilities incurred may not directly benefit the Trust Fund;

(g) import or export goods and to enter into contracts for importing, exporting, shipping or otherwise transporting goods;

(h) advertise that business or make the business known by any means the Trustee thinks fit;

(i) apply for, purchase, renew or hold any permit, agency or licence, including a licence relating to the supply of liquor, which may be required to enable or facilitate the carrying on of such business or which may be desirable for the Trustee to apply for, purchase or hold in the interests of that business and to surrender, relinquish, sell, vary or assign the same and transfer or surrender that licence, permit or authority or to allow a nominee to do any of the same on the Trustee's behalf;

(j) enter into any covenant or agreement in restraint of trade jointly, severally or otherwise;

(k) transfer title to any property which it holds as trustee with or without consideration even if title cannot be effectually or validly transferred by reason of the proposed transferor being a trustee or due to the transferee having notice that the transferor is a trustee otherwise;

(l) dispose of the business or any interest in the business, including the goodwill of the business;

(m) leave the entire management of such business to any partner in or manager of the business;

(n) renew partnerships; and

(o) generally act in all matters relating to such business as if it were beneficially entitled to the business and without being responsible for loss.

8.24 External parties not required to make inquiries

The Trustee shall have the power to carry on any business or have any other kind of dealing with any other person without that or any other person being required to inquire as to whether the Trustee has the power to deal with that person or whether the Trustee is properly exercising any power it may have in

so dealing, nor shall any person be required to inquire as to the proper application by the Trustee of any payment made or any other benefit provided to the Trustee and such a person is not accountable if such payment or other benefit is not properly applied even if that person had notice that the Trustee was carrying on business as a trustee.

8.25 Powers relating to other companies or trusts

The Trustee shall have the power to establish, promote, acquire, sell or dispose of (whether alone or jointly with any other person) any companies or trusts or interests in any companies or trusts.

8.26 Franchises

The Trustee shall have the power to acquire, dispose of or otherwise deal with any franchise or franchise agreement or similar business, structure or subject matter.

8.27 Powers to act as service entity

The Trustee shall have the power to act as a service entity in providing services and supplies to any other entity or business including without limitation, office supplies, professional or other employees, office furniture and equipment, stationery, telephone and electricity services, management, administration and consultancy services and anything incidental to those services or supplies.

8.28 Executing documents with others

The Trustee shall have the power to execute any document jointly with any other person including a mortgage, guarantee, indemnity or any other document securing the payment of money or the performance of any contract, obligation, or undertaking by any person (whether a Beneficiary Trustee or other person) with or without receiving any direct or indirect consideration or benefit for doing so.

8.29 Powers regarding employment

The Trustee shall have the power to employ or engage any person (whether or not such person is a Trustee or holds an office with the Trustee or is otherwise interested in the Trust Fund as a Beneficiary or otherwise) in any capacity or vary or terminate such employment or engagement, such person being entitled to transact all or any business of whatsoever nature required to be done in pursuance of the trusts and powers in this Deed including the receipt or payment of money, and to pay the expenses of such persons and such further fee or other remuneration for the services of such persons including superannuation and bonuses as the Trustee shall think fit and if the person is a Beneficiary, such payment shall be construed as a payment as a result of such employment and not on account of their position as a Beneficiary.

8.30 Power to pay retirement benefits, etc

The Trustee shall have the power to pay retirement benefits or to establish or assist the establishment of or support schemes or funds providing superannuation, death or retirement benefits for or in respect of employees or ex-employees of the Trustee and the directors or other officeholders of the Trustee and of any person associated with the Trustee and the dependants of any of those persons.

- 8.31 Power to pay all expenses from the Trust Fund**
- The Trustee shall have the power to pay out of the income and capital of the Trust Fund all costs, charges and expenses incidental to the management of the Trust Fund or to the exercise or purported exercise of any discretion, authority or power by the Trustee or otherwise performing or purporting to perform the trusts contained in this Deed including any income tax or other taxes payable in respect of the Trust Fund and any settlement, probate, estate, gift, stamp or other revenue duties and all costs in any way connected with the preparation and execution of this Deed and to set aside out of the income or capital of the Trust Fund such funds as the Trustee thinks fit to meet any such costs, charges or expenses and whether or not the Trustee is legally obligated to pay such costs, charges or expenses.
- 8.32 Gifts and donations**
- The Trustee shall have the power to make gifts or donations for any charitable, religious, scientific or educational purpose.
- 8.33 Investing by instalments**
- The Trustee shall have the power to make any investment on terms that the investment be paid for by more than one instalment and that outstanding instalments may bear interest.
- 8.34 Power to mix assets**
- The Trustee shall have the power to mix the assets or liabilities of the Trust Fund with any other assets or liabilities under the control of the Trustee and in addition to invest or otherwise deal with those mixed assets as if they were not mixed.
- 8.35 Trustee's power to deal with itself or other related parties**
- The Trustee shall have the power to deal with itself in its personal capacity or in its capacity as trustee of other trust funds (or directors or shareholders of itself, if the Trustee is a company) or otherwise as if there were two separate persons to the dealings, and with any trust, company or partnership notwithstanding that the Trustee is a beneficiary, unitholder, shareholder, director, member or partner of that trust, company or partnership or with any other related party of the Trustee including the Domestic Partner or Child of the Trustee, if the Trustee is a company) in any manner as the Trustee thinks fit, including without limitation selling, transferring, hiring, leasing, licensing or disposing of any real or personal property of the Trust Fund or lending or advancing any moneys or carrying on any profit making undertaking or scheme in partnership with the Trustee or otherwise.
- 8.36 Power to protect the Trust Fund**
- The Trustee shall have the power to take such action as the Trustee thinks fit for the purpose of protecting the Trust Fund or any part thereof without limitation entering into transactions or arrangements to hedge or protect the Trust Fund against movements in currency rates, and prices of property, shares or commodities.
- 8.37 Powers regarding insurance**
- The Trustee shall have the power to acquire or assist in the acquisition or implementation of any form of insurance policies for the purpose of insuring any

person, persons or property, including life insurance, keyman, sickness, accident and disability policies; to purchase or enter into insurance or investment bonds whether or not the bonds are linked to a policy over the life of any person; to deal with those policies as the Trustee thinks fit and to nominate the Trustee (in its capacity as Trustee), any officeholder of a corporate Trustee or any Beneficiary as the beneficiary under the policies.

8.38 Powers regarding legal proceedings

The Trustee shall have the power to institute, join in or defend any legal proceedings whether being contested in a Court of law or otherwise and to be involved with or terminate such involvement in those proceedings on such terms and conditions as the Trustee thinks fit.

8.39 Powers regarding legal advice

The Trustee shall have the power to take and act upon the opinion of any legal practitioner in any country in which any part of the Trust Fund is or may be invested from time to time or in which it proposes to invest from time to time whether in relation to the interpretation of this Deed or any other document or statute or as to the administration of the trusts set out in this Deed without being liable to anyone in respect of any act done by it in accordance with such opinion but nothing in this Deed shall:

- (a) oblige the Trustee to act in accordance with any such opinion; or
- (b) prohibit the Trustee from applying to the Court as it thinks fit.

8.40 Powers regarding other experts

The Trustee shall have the power to employ or engage or solicit advice from agents or professionals instead of or in addition to acting personally in the execution of the powers or administration of trusts under this Deed and to pay out of the Trust Fund any managers, agents, advisers, legal practitioners, auditors, accountants, brokers, surveyors or other persons in relation to the execution of such powers or the administration of such trusts and to act or not act upon the opinion or advice of those persons without being responsible for any loss or damage resulting from acting or not acting in accordance with such opinion or advice and to vary or terminate such employment or engagement.

8.41 Powers of attorney, etc

In addition to the power to delegate to any person contained in subclause 11.3, without limiting that power in any way, the Trustee shall have the power to appoint any person to be able to execute any document which the Trustee may or must execute by this Deed or by law as the representative or attorney of the Trustee and to revoke such appointment.

8.42 Powers to create Subtrusts

Subject to subclause 13.2, Part 10 of the Schedule and obtaining the written consent of the Appointor, the Trustee shall have the power to:

- (a) separate any part of the capital of the Trust Fund and hold, or appoint a person to hold, that part of the capital of the Trust Fund on trust as a Subtrust within the Trust for all or such of the Beneficiaries as the Trustee may determine;

PROVIDED THAT if the condition that caused a Trustee to be a Disqualified Person ends, is reserved, reversed or otherwise ceases to apply, then that former Trustee will assume their position as Trustee, or if several Trustees are in office jointly, then with the other Trustees at that time.

- (b) is a Disqualified Person
- (a) dies; or

A Trustee shall automatically be removed if or for as long as a Trustee:

9.2 Automatic removal of the Trustee

The Trustee may at any time it thinks fit resign by written instrument and giving notice to the Appointor (if any) and the Appointor (or if there is no Appointor, then the resigning Trustee) shall be required to appoint a new Trustee or Trustees in succession whereupon the resigning Trustee shall transfer the Trust Fund to such new Trustee or Trustees.

9.1 Trustee may resign

9. Appointment and removal of Trustee

The Trustee shall have the power to do anything incidental to the exercise of the powers, including the unlimited powers in this clause 8, conferred on the Trustee by this Deed.

8.45 Incidental powers

The Trustee shall have the power to lease, licence, rent, exchange or take on lease or take on bailment or on hire purchase any real or personal property or any interest in any real or personal property and in particular (without limitation) any chattels, machinery, plant and stock-in-trade from or to any person and on any such terms to which the Trustee agrees.

8.44 Power to enter into a leasing, asset finance, hire purchase or equipment facility

Notwithstanding that any Trustee may be a sole Trustee, the Trustee shall have the power to receive capital and other moneys as additions to the Trust Fund including any gifts whether made inter vivos, by Will or other provisions of any other trust and whether or not subject to any liabilities or conditions and to give valid and effectual receipts therefore for all purposes and for the purposes of any statutes, regulations or other laws including the receipt of capital moneys which may or may not be deemed to be capital moneys for the purposes of any such laws.

8.43 Power to receive capital including gifts

- (b) as far as is practicable the Trustee shall treat each Subtrust as a separate trust fund within the Trust and the provisions of the Deed shall apply to the Subtrust as if it were a separate trust fund;
- (c) appoint a new Trustee in respect of any one or more of the Subtrusts; and
- (d) for the purposes of any applicable law in the Governing Jurisdiction, consolidate the records of the Trust Fund and any Subtrust.

9.3 Appointment and removal of the Trustee by the Appointor

Subject to subclause 13.2 and Part 10 of the Schedule, the Appointor shall have the power, from time to time remove the Trustee from office (other than any trustee appointed by the Court) and to appoint a new or additional trustee in their or its place by written instrument.

9.4 Alternative Trustee

The Trustee shall have the express power to appoint any person to be an alternate Trustee of the Trust in place of the Trustee, whose appointment will have effect during any period that the Trustee is absent from Australia or its States or Territories, **PROVIDED THAT** if there is more than one Trustee, the Trustee making the appointment has the consent of each of the other Trustees to the appointment and each Trustee may at any time in writing alter such appointment made by that Trustee of an alternate Trustee.

9.5 Change of Trustee not effected until consent given by the new Trustee

Any new, additional or alternative Trustee must consent in writing to becoming the new Trustee of the Trust and being bound by the terms of this Deed before its appointment is effective.

9.6 Changes of Trustee to be kept with this Deed

Any document effecting a change in the office of Trustee of the Trust shall be attached and kept with this Deed and if there are multiple copies of the Deed then with each copy and any person dealing with the Trustee may rely upon such a copy of the Deed as if it were the original; however, any omission in doing so shall not invalidate the change of trustee.

9.7 Obligations of removed or resigned Trustee

A Trustee shall upon resignation or removal (as the case may be) use its best endeavours to:

- (a) cause the Trust Fund and the assets forming part of the Trust Fund to be vested in the new Trustee or Trustees of the Trust; and
- (b) deliver to the new Trustee or Trustees of the Trust all books, documents and other property relating to the Trust.

9.8 Resigned or removed Trustee discharged from trusts

A resigned or removed Trustee of the Trust shall be effectually discharged from the trusts created by this Deed notwithstanding that any trustee appointed in substitution is acting alone or is not a trustee company for the purposes of the Trustee Companies Act in the Governing Jurisdiction (if any) or that no trustee is appointed.

9.9 New Trustee may accept account rendered

- (a) Any new Trustee may accept the account rendered and the property delivered to them by the continuing trustee or the new Trustee's predecessor in office without being bound to enquire further as to the assets of the Trust Fund. Any person ceasing to be a Trustee may be given full and complete discharge by the Appointor.

- (b) The costs, charges and expenses of and in connection with the resignation, removal, replacement or appointment of any Trustee shall be recouped from the Trust Fund.

10. Liability, indemnity and reimbursement of Trustee

10.1 Trustees Remuneration

The Trustee may charge and retain out of the Trust Fund such Trustee's commission as the Appointor and the Trustee agree.

10.2 Professional Trustees' remuneration

Any Trustee (or directors of a Trustee, if the Trustee is a company) who is a legal practitioner or accountant or other person carrying on a business or profession or occupation or any firm of which they may be a member shall be entitled to make all such usual and proper charges for both their professional and other services in the administration of the trusts hereof and for their time and trouble as they would have been entitled to make if not a trustee and so employed.

10.3 Limitation of liability

The Trustee (or any person who is a shareholder or director of the Trustee if the Trustee is a company) shall not be responsible or liable for:

- (a) any loss or damage arising from its administration or management of the Trust by exercising (or failing to exercise) any discretion or power under this Deed or by law conferred on the Trustee; or
- (b) any breach of duty or trust whatsoever;
- unless such act is proved to have been committed, made or omitted in bad faith or dishonesty of the Trustee.

10.4 Indemnity

The Trustee acting in good faith will be entitled to be indemnified out of the Trust Fund in respect of:

- (a) all liabilities incurred in executing (or failing to execute) any powers, duties, authorities or discretions vested in the Trustee by this Deed and by law; and
- (b) all actions, proceedings, costs, claims and demands in relation to any matter or thing done or omitted to be done concerning the Trust Fund; but
- (c) the rights of indemnity shall be limited to the assets and investments of the Trust.

10.5 Expenses of the Trust may be paid out of the Trust Fund

The Trustee may pay for any costs or expenses incurred in administering or purporting to administer the Trust Fund out of such income or capital of the Trust Fund as it so determines.

10.6 Reimbursement of the Trustee

The Trustee may be reimbursed from the Trust Fund for any expenses incurred in administering or purporting to administer the Trust Fund and may apply the Trust Fund as it thinks fit in satisfying such reimbursement, provided it does so in good faith.

10.7 Receipts

Despite being a sole Trustee, a sole Trustee may receive capital and other moneys and give valid and effectual receipts for all purposes and for the purposes of any statutory enactment including the receipt of moneys which may or may not be deemed to be capital moneys.

10.8 Records and Accounts

The Trustee shall keep complete and accurate books of account and records of all receipts and expenditures on account of the Trust Fund. Promptly after the close of each Accounting Period, the Trustee shall prepare a written accounting report (in accordance with generally accepted accounting principles at the relevant time) for such period consisting of a balance sheet, a statement of income and expenditure and a list of assets held at the close of such Accounting Period. This must be done in a way that will enable any business being carried out under the Trust to be audited. If requested, a copy of same shall be furnished on the Appointor and to each of the Designated Beneficiaries.

11. Exercise of powers of Trustee

11.1 Determinations of the Trustee

Any determination by the Trustee in exercise of any power, discretion, or authority conferred on the Trustee by this Deed may be made:

- (a) if the Trustee is an individual, by instrument in writing signed and dated by the Trustee; or
- (b) if the Trustee is a company, by oral or other resolution of the board of directors in accordance with the governing rules (such as constitution or other agreement) of such company; and

may be evidenced (whether or not the Trustee is a company) if noted in minutes of proceedings or other form of written resolution prepared on or after the day of the determination occurred to confirm it has been made and signed as a true record by the Trustee or a director of the Trustee if a company (as the case may be).

11.2 Discretion of the Trustee and reasons for decisions

Subject only to any express provision to the contrary herein contained, every discretion vested in the Trustee shall be absolute and uncontrolled and every power vested in the Trustee shall be exercisable at its absolute and uncontrolled discretion and the Trustee shall have the like discretion in deciding whether or not to exercise any such power. The Trustee shall not be bound to give any reason or grounds for the exercise of any power or discretion.

The Trustee is not bound to act personally but may act as a manager and employ any person to act as manager or to employ any contractor, manager, legal practitioner, accountant, clerk, employee, servants or agents to transact all or any business of any nature including the receipt and payment of money. The Trustee shall decide the remuneration to be allowed and paid and all charges and expenses so incurred.

11.6 Trustee not bound to act personally

The Trustee may exercise or concur in exercising all of the powers and discretions contained in this Deed or otherwise by law conferred notwithstanding that any person being a Trustee or any person being a director or shareholder of a Trustee hereof (being a company) has or may have a direct, indirect, material or immaterial personal interest (whether as trustee of any other settlement or in their personal capacity or shareholder or director or partner of any company or partnership or as a unit holder in any unit trust or beneficiary of any discretionary trust or otherwise howsoever) in the mode or result of exercising such power or discretion or may benefit either directly or indirectly as a result of the exercise of any such power or discretion, or may benefit directly, indirectly, materially or immaterially as a result of the exercise of those powers and notwithstanding that the Trustee for the time being is the sole trustee.

11.5 Trustee may act notwithstanding interests

In addition to any right the Trustee may have under the general law to refuse to disclose any document or deliberations it may undertake to any person, it is expressly declared that the Trustee shall not be bound to disclose to any person (including any Beneficiary):

(a) any documents relating to the exercise, proposed exercise or non-exercise of any power or discretion conferred on the Trustee under this Trust; nor

(b) any document or deliberations it may undertake disclosing the processes the Trustee used in making any decisions or not making any decisions about the exercise of any such power or discretion nor any document or deliberations it may undertake disclosing the reasons for making or not making any such decisions.

11.4 Disclosure of documents or deliberations

The Trustee may delegate the exercise of all or any of the powers or discretions conferred on the Trustee under this Deed by nominating a delegate in writing and may execute any powers of attorney or other instruments necessary to give effect to that purpose.

11.3 Delegation of powers

11.7 Several Trustees to act jointly

If at any time there is more than one Trustee, such Trustees shall act jointly and they may in writing delegate the exercise of all or any of the powers or discretionary authorities conferred on the Trustee and execute any powers of attorney or other instrument necessary to effectuate such purpose. In the event of disagreement between the Trustees as to any matter affecting the Trust Fund or as to the exercise of, or any other decision relating to, any of the Trustee's powers and discretions under this Deed then,

- (a) the matter for decision shall be referred to a vote of all the Trustees at a mutually agreeable time and place where they shall all vote on the matter under consideration, and if they cannot all meet at the same time and place then the matter under consideration (**the Proposal**) shall be put in writing and sent by post, email or other means of electronic or other communication to each of the Trustees whereupon they shall each vote on the matter by replying within seven (7) days and if they do not reply then by their non-reply they shall be taken to have assented to the Proposal;
- (b) if the votes for the Proposal are not unanimous but there is a majority for or against the Proposal, the Trustees shall give effect to the wishes of such majority as though it were a decision by all the Trustees; and
- (c) if, after the vote on the Proposal, there is still a deadlock and the Trustees cannot reach agreement, then the Proposal shall, if any trustee so requires, be referred to decision by arbitration pursuant to any Arbitration Law currently in force under the Governing Jurisdiction and the Trustees shall give effect to the award of the arbitrator under such arbitration as though it were a unanimous decision by all the Trustees.

11.8 Corporate Trustee exercise of power

If the Trustee is a company, it may exercise any discretion or power under the provisions of this Deed or otherwise conferred on the trustee by resolution of the directors of the company as required by the terms of the company's constitution or other governing rules. Any person dealing with the Trustee may then rely upon a copy of any minutes or written records regarding the exercise of such discretion or power.

11.9 Representative of corporate trustees

A Trustee which is a company may appoint a representative for the purpose of attending Trustee meetings.

11.10 Trustee assumptions

Any person dealing with the Trustee is entitled to assume that, unless the Trustee has been fraudulent or acted in bad faith to the knowledge of that person:

- (a) the Trustee has the power to enter into the dealing;
- (b) the Trustee has properly executed the Trustee's powers under this Deed;
- (c) the Trustee has properly entered into transactions affecting the Trust Fund;

- (d) the Trustee has properly used money paid to the Trustee or at the Trustee's discretion; and
- (e) the dealing is valid.

11.11 Consent of Designated Appointors

- (a) Where two or more Appointors are Designated Appointors, and subject to any specific terms in the nomination of the Designated Beneficiaries who become Designated Appointors by the Appointor, the Trustee must obtain the written consent of each of the Designated Appointors before:

- (i) Net Income is distributed (other than between the Designated Appointors in the Designated Proportions);
- (ii) capital or corpus is applied or distributed (other than between the Designated Appointors in the Designated Proportions); or
- (iii) the use of trust property is permitted under subclause 8.7.

- (b) For the absolute avoidance of any doubt:

- (i) nothing in this clause obliges the Trustee to exercise its discretion to make any distribution of Net Income or capital of the Trust or affects the Trustee's power to accumulate the Net Income; and
- (ii) if the Trustee wishes to distribute Net Income or capital of the Trust other than as outlined in subparagraphs 11.11(a)(i) and 11.11(a)(ii) and the consent of the Designated Appointors is not obtained under this clause, the Trustee must deal with the Net Income and capital of the Trust in accordance with the default provisions of subclauses 3.4 and 4.3 of this Deed.

11.12 No obligation for the Trustee to survey, communicate with or contact the Beneficiaries

- (a) The Trustee shall have absolute and uncontrolled discretion in making any decision or determination or exercising any power or discretion under the terms of this Deed (including but not limited to determining and distributing the Net Income and/or capital of the Trust) and shall not be required to survey, communicate with or in any way contact any one or more of the Beneficiaries prior to making any decision, determination or prior to exercising any power or discretion under the terms of this Deed.

- (b) Except where required by law, the Trustee, in exercising a power of investment is not required to consider any of the following:

- (i) the purposes of the Trust;
- (ii) any Beneficiary's needs or circumstances;
- (iii) the term of the proposed investment;
- (iv) the likely duration of the Trust;
- (v) the desirability for diversification of Trust investments;

- (vi) the nature of and risk associated with existing Trust investments and property;
- (vii) the need to maintain the real value of the income or capital of the Trust;
- (viii) the risk of income or capital loss or depreciation;
- (ix) the potential for capital appreciation;
- (x) the likely income return and the timing of income return;
- (xi) the liquidity and marketability of the proposed investment;
- (xii) the aggregate value of the Trust estate;
- (xiii) the effect of the proposed investment in relation to the Trust's tax liability;
- (xiv) the likelihood of inflation affecting the value of the proposed investment or other Trust property;
- (xv) any costs of making the proposed investment; or
- (xvi) any review of existing Trust investments.

12. Appointment, removal and succession of the Appointor

12.1 Automatic removal of Appointor

Subject to the succeeding subclause, an Appointor shall automatically be removed if or for as long as an Appointor:

- (a) dies; or
- (b) is a Disqualified Person.

12.2 Appointor can resume position

Notwithstanding the automatic removal of an Appointor pursuant to subclause 12.1, if the condition that caused the Appointor to be a Disqualified Person ends, is reversed or otherwise ceases to apply, then that former Appointor may resume their position as Appointor, or if several Appointors are in office jointly, then with the other Appointors of the Trust at that time.

12.3 Power to appoint further Appointors

Subject to Part 10 of the Schedule:

- (a) in the case of a sole Appointor, the Appointor may appoint a person as an additional, replacement or successor Appointor in their place by written instrument (including by deed, Will or codicil);
- (b) in the case of several Appointors, each Appointor may appoint a person as an additional, replacement or successor Appointor in their place by written instrument (including by deed, Will or codicil) and such additional, replacement or successor Appointors shall act jointly with the remaining Appointors and be subject to the terms of this Deed; and

(c) an Appointor making a nomination or appointment of an additional, replacement or successor Appointor may place such conditions, restrictions on such nomination, appointment or succession as it sees fit including but not limited to making same revocable or irrevocable.

12.4 Resignation of Appointor

The Appointor (including any person nominated or appointed to become the Appointor either presently or at some subsequent time) may resign by written instrument given to the Trustee whereupon that person shall cease to be the Appointor.

12.5 Succession of Appointors – in the absence of any nomination

Subject to Parts 9 and 10 of the Schedule and in the absence of any nomination or appointment to the contrary:

(a) in the case of a sole individual Appointor's death or for as long as they are under a Legal Disability, the Legal Personal Representative of such individual shall assume the role as the Appointor to succeed the individual;

(b) in the case of several Appointors, on the death of one of them or for as long as one of them is under a Legal Disability, the remaining Appointors who are alive and/or not under a Legal Disability shall be the Appointors (**Remaining Appointors**);

(c) on the death of the last of the Remaining Appointors or for as long as there is only one Remaining Appointor and they are surviving but under a Legal Disability, their Legal Personal Representative shall be the Appointor; and

(d) where a Legal Personal Representative of an individual is appointed as an Appointor pursuant to this clause, subject to any conditions provided in a nomination (if any), such Legal Personal Representative shall:

(i) act jointly with each other (where there are several Legal Personal Representatives) and the remaining Appointors (if any);

(ii) act in their fiduciary capacity as Legal Personal Representatives of the deceased Appointor only, and not personally; and

(iii) have all the powers otherwise vested in the Appointor as provided in this clause.

12.6 Alternate Appointor

An Appointor who is a natural person shall have the express power to appoint any person to be an alternate Appointor in their place, whose appointment will have the effect during any period that the Appointor is absent from Australia or its States or Territories provided that if there is more than one Appointor, the Appointor making the appointment has the consent of each of the other Appointors to the appointment and each Appointor may at any time in writing alter such appointment made by that Appointor of an alternate Appointor.

12.7 Further or successor Appointors to have rights under this Deed

For the absolute avoidance of any doubt, any further or successor Appointor shall, subject to this Deed and any conditions or restrictions imposed on their appointment, have the same rights as the initial Appointor under this Deed including the power and discretion to appoint further or successor Appointors as if they were named as an initial Appointor of the Trust.

13. Decisions of the Appointor

13.1 Several Appointors to act jointly

Subject to subclause 13.2 and Part 10 of the Schedule, if, at any time, there is more than one Appointor appointed pursuant to this Deed:

- (a) those persons shall act jointly and, all decisions, determinations and exercises of powers or discretions under this Deed shall be made in writing and signed by each Appointor; and
- (b) those persons may in writing delegate the exercise of all or any of the powers hereby conferred on the Appointor to one or more of themselves or to any other person or persons and may execute any Powers of Attorney or other instrument necessary to effect such purpose.

13.2 Nomination of Additional Designated Beneficiaries, Designated Proportions and Designated Appointors

- (a) The Appointor may by written instrument (including by deed, Will or codicil) nominate any one or more individuals who are also Beneficiaries as Additional Designated Beneficiaries, on such terms and/or conditions as they think fit, and may also revoke such nomination.
- (b) The Appointor may by written instrument (including by deed, Will or codicil) nominate the Designated Proportions applicable to the Additional Designated Beneficiaries upon their becoming Designated Appointors in accordance with the provisions of this Deed and may revoke such nomination.
- (c) For the avoidance of any doubt, if the Appointor wishes for an Additional Designated Beneficiary to become a Designated Appointor, the Appointor must also nominate such Designated Beneficiary to become an Appointor, whether by succession, substitution or otherwise, in accordance with the provisions of this Deed.
- (d) If at any time there are two or more Designated Appointors:
 - (i) the written consent of each of the Designated Appointors is required before a trustee may be removed under subclause 9.3;
 - (ii) the written consent of each of the Designated Appointors is required to appoint a new or additional trustee under subclause 9.3; and

(!!!!) where this Deed requires the written consent of the Appointor, that consent shall only be effective upon the giving of the written consent of each Designated Appointor.

13.3 Resolution of Disputes

If the Appointor at any time consists of more than one person and those persons cannot reach an agreement with regard to any decision, determination, exercise of power or discretion or any other matter in relation to the Trust, then:

(a) any one of the Appointors may call a meeting of the Appointors to resolve the disagreement by serving a notice in writing detailing the nature of the disagreement to all of the Appointors and specifying a time and place for the meeting which shall not be more than seven (7) days after the service of the notice (**the First Meeting**);

(b) if the disagreement cannot be resolved at the First Meeting, the Appointors shall arrange a second meeting (**the Second Meeting**) before the adjournment of the First Meeting which shall be held at a mutually agreed time and place as soon as practicable but no later than seven (7) days after the First Meeting is held;

(c) if the disagreement cannot be resolved at the Second Meeting, the Appointors shall no more than seven (7) days after the Second Meeting refer the matter to mediation by an agreed mediator or in the absence of agreement then to a mediator nominated by the President for the time being of the Law Institute or Society in the Governing Jurisdiction;

(d) any mediator nominated under this clause shall call a further meeting of the Appointors (**the Mediation Meeting**) as soon as practicable but no more than twenty-one (21) days after the mediator's appointment, after which time the appointment will terminate and a new appointment shall be made under the preceding paragraph;

(e) if all of the Appointors reach agreement at any stage whether before, during or after the Mediation Meeting scheduled under this clause, they shall record such agreement in writing signed by each of them;

(f) if at any stage and for any reason an Appointor cannot be present at a meeting called and held in accordance with this clause then that Appointor may by writing served on the other Appointors before the meeting nominate a representative to attend that meeting in their stead and that representative may take part in the meeting and make decisions as if the representative was the relevant Appointor; and

(g) if the disagreement cannot be resolved at the Mediation Meeting and all of the Appointors do not agree to accept the decision of the mediator, then the matter shall be referred to decision by arbitration pursuant to any Arbitration Law currently in force under the Governing Jurisdiction and the Appointors shall give effect to the award of the arbitrator under such arbitration as though it were a unanimous decision by all the Appointors.

13.4 Disclosure of Documents or Deliberations

In addition to any right the Appointor may have under the general law to refuse to disclose any document or deliberations it may undertake to any person, it is

expressly declared that the Appointor shall not be bound to disclose to any person (including the Trustee or Beneficiaries):

- (a) any document disclosing any deliberations of the Appointor as to the manner in which the Appointor should exercise any power or any discretion conferred upon the Appointor by this Deed or disclosing the processes or reasons for any particular exercise of any such power or any such discretion or the material upon which such reasons or the exercise of such power or discretion is based; and
- (b) any other document relating to the exercise or proposed exercise of any power or any discretion conferred on the Appointor by this Deed.

13.5 No consent required where no Appointor or successor Appointor appointed

If there is no Appointor, or if the Appointor subsequently resigns or is removed without an immediate or future successor replacement, then any exercise of a discretion or power under the provisions of this Deed shall be exercised without requiring the Appointor's consent.

13.6 Indemnity

The Appointor acting in good faith will be entitled to be indemnified out of the Trust Fund in respect of:

- (a) all liabilities incurred in executing (or failing to execute) any powers, duties, authorities or discretions vested in the Appointor by this Deed and by law; and
- (b) all actions, proceedings, costs, claims and demands in relation to any matter or thing done or omitted to be done concerning the Trust Fund; but
- (c) the rights of indemnity shall be limited to the assets and investments of the Trust.

13.7 No obligation for the Appointor to survey, communicate with or contact the Beneficiaries or the Trustee

The Appointor shall have absolute and uncontrolled discretion in making any decision or determination or exercising any power or discretion under the terms of this Deed (including but not limited to the power to remove and appoint the Trustee) and shall not be required to survey, communicate with or in any way contact any one or more of the Beneficiaries or the Trustee prior to making any decision, determination or prior to exercising any power or discretion under the terms of this Deed.

14. Amendment of deed and the Vesting Date

14.1 Powers to amend the Deed

Subject to subclauses 13.2 and 14.2, Part 10 of the Schedule and obtaining the written consent of the Appointor, the Trustee may from time to time as it thinks fit, alter, vary, revoke or add to the Deed including any trust, limitation or clause of this Deed, whether originally in this Deed or as altered, varied, revoked or added to under this clause 14 from time to time, other than this clause 14 as the Trustee thinks fit by a further Deed supplemental to this Deed.

14.2 Restrictions on powers of amendment

No amendment, alteration, revocation or addition of this Deed under this clause may:

(a) infringe any applicable law against perpetuities;

(b) be made in favour of or for the benefit of or so as to result in any benefit to the Settlor or other Excluded Person;

(c) affect the beneficial entitlement to any amount allocated for or otherwise absolutely and irrevocably vested in any Beneficiary prior to the date of the amendment; or

(d) contravene any special provisions set out in Part 10 of the Schedule.

14.3 Amendments to the Deed to be kept with this Deed

Any document effecting an amendment of this Deed shall be attached and kept with this Deed and if there are multiple copies of the Deed then with each copy and any person dealing with the Trustee may rely upon such a copy of the Deed as if it were the original; however, any omission in doing so shall not invalidate the amendment.

14.4 Power to nominate an earlier or later Vesting Date

Subject to subclause 13.2, Part 10 of the Schedule and obtaining the written consent of the Appointor, the Trustee may determine that the Vesting Date will be a date earlier or later than the date which but for such determination would be the Vesting Date as long as such nominated date shall not infringe the rule against perpetuities in the Governing Jurisdiction.

15. Governing Jurisdiction

The Parties note that:

(a) this Deed shall be construed in accordance with and governed by the law and jurisdiction of the Governing Jurisdiction as stipulated in Part 11 of the Schedule; but

(b) the Parties submit to the non-exclusive jurisdiction of the Courts of the Governing Jurisdiction and the Federal Court of Australia.

EXECUTED AS A DEED:**SETTLOR**

SIGNED SEALED AND DELIVERED by
SCOTT WILLIAM WALKER in the presence
of:

Witness

Witness full name

ANNA MIRSKI

SCOTT WILLIAM WALKER

TRUSTEE

EXECUTED by **BOSO INVESTMENTS PTY**)
LTD (ACN 700 743 380) in accordance with)
 section 127 of the *Corporations Act 2001*)
 (Cth):



 Director

 David Charles Smith
 Full name

 6 Castle Rock Court, Wattle Grove, New South Wales
 Usual address



 Director

 Alison Louise Smith
 Full name

 6 Castle Rock Court, Wattle Grove, New South Wales
 Usual address

SCHEDULE

This schedule is annexed to and forms part of the Deed

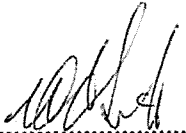
1. Date	29 - 7 - 2026
2. Settlor	Scott William Walker of 26 Dinjerra Close, Bangor, New South Wales
3. Trustee	Boso Investments Pty Ltd (ACN 700 743 380) of 6 Castle Rock Court, Wattle Grove, New South Wales
4. Name of the Trust	Boso Investments Trust
5. Settled Sum	\$10.00
6. Primary Beneficiary	David Charles Smith and Alison Louise Smith both of 6 Castle Rock Court, Wattle Grove, New South Wales
7. Additional Beneficiaries and Designated Proportions	NIL
8. Vesting Date	Eighty (80) years from the date of this Deed or, if a later date is permitted by law, the later date so permitted.
9. Appointor	David Charles Smith and Alison Louise Smith both of 6 Castle Rock Court, Wattle Grove, New South Wales
10. Special Provisions	NIL
11. Governing Jurisdiction -	New South Wales

Circulating Resolution

The directors of **BOSO INVESTMENTS PTY LTD (ACN 700 743 380) (the Company)** in the Company's capacity as trustee of the **Boso Investments Trust (the Trust)** pursuant to section 248A of the *Corporations Act 2001* (Cth), the Company's constitution and for all other purposes

BUSINESS & RESOLUTIONS	1. IT WAS RESOLVED THAT the Company executes a deed of trust to establish the Trust and that any two directors of the Company be authorised to do so on behalf of the Company in line with its constitution and other governing rules (as applicable). 2. IT WAS RESOLVED THAT the Company consents to be appointed as trustee of the Trust. 3. IT WAS RESOLVED THAT the Company undertakes to distinguish any transactions and responsibilities on behalf of the Trust from any other transactions and responsibilities in any other capacity.
DOCUMENTS TABLED	1. Deed of trust establishing the Trust; and 2. Company's constitution.

Signed as a true and correct record



.....

Director: David Charles Smith



.....

Director: Alison Louise Smith

Dated: 29/07/2026

IDENTIFICATION CHECK
NATURAL PERSON
STATUTORY RECEIPT

DATE OF ID CHECK17 Jun 2026 at 23:18

STATUS✓Verified

RECEIPT EXPIRY DATE17 Jun 2027

Record

NAMESMITH, ALISON LOUISE

DATE OF BIRTH14 Oct 1966

ADDRESS6 CASTLE ROCK COURT, WATTLE GROVE NSW 2173, Australia

DOCUMENT TYPEPassport

DOCUMENT ISSUERAustralia

DOCUMENT NUMBERXXXXXXX01

DOCUMENT EXPIRY DATE18 Aug 2032

REFERENCE NUMBER260617-022CB-00624

DATA SOURCE



Australian Government
Attorney-General's Department

In accordance with the Australian Anti-Money Laundering and Counter Terrorism Financing Act 2006 (AML Act) this ID check has been performed against data held by various Australian federal and state government departments, and is therefore classified as "reliable and independent", therefore complying with the identification standards applied in the AML Act.

Connexian takes your privacy and data security seriously, consequentially all document IDs and/or reference numbers have been removed. Should you require further detail in relation to this transaction please contact help@connexian.com.au.

IDENTIFICATION CHECK
NATURAL PERSON
STATUTORY RECEIPT

DATE OF ID CHECK	17 Jun 2026 at 23:20
STATUS	✓ Verified
RECEIPT EXPIRY DATE	17 Jun 2027

Record

NAME	SMITH, DAVID CHARLES
DATE OF BIRTH	20 Dec 1959
ADDRESS	6 CASTLE ROCK COURT, WATTLE GROVE NSW 2173, Australia
DOCUMENT TYPE	Passport
DOCUMENT ISSUER	Australia
DOCUMENT NUMBER	XXXXXXX45
DOCUMENT EXPIRY DATE	09 Jan 2033
REFERENCE NUMBER	260617-46B45-296BB
DATA SOURCE	 Australian Government Attorney-General's Department

In accordance with the Australian Anti-Money Laundering and Counter Terrorism Financing Act 2006 (AML Act) this ID check has been performed against data held by various Australian federal and state government departments, and is therefore classified as "reliable and independent", therefore complying with the identification standards applied in the AML Act.

Connexian takes your privacy and data security seriously, consequentially all document IDs and/or reference numbers have been removed. Should you require further detail in relation to this transaction please contact help@connexian.com.au.

InvApp00011422 BOSO INVESTMENTS TRUST

Provided documents:

- InvApp00011422 - BOSO INVESTMENTS TRUST - PEP GATEWAY EVERGREEN (ACCESS FUND) - App Form (signed)
- InvApp00011422 - BOSO INVESTMENTS TRUST - ID Check - 0000024717
- InvApp00011422 - BOSO INVESTMENTS PTY LTD - ID Check - 0000024716
- InvApp00011422 - SMITH ALISON LOUISE - ID Check - 0000019939
- InvApp00011422 - SMITH DAVID CHARLES - ID Check - 0000019940
- InvApp00011422 - BOSO INVESTMENTS TRUST - FATCA and CRS Form - 0000005091
- InvApp00011422 - BOSO INVESTMENTS TRUST - Trust Deed